

ELIZABETH II



1967 CHAPTER xxxvi

An Act to confer further powers on the lord mayor, aldermen and citizens of the city of Portsmouth in relation to lands, buildings and streets, and to make further provision for the improvement, health, local government and finances of the city; and for other purposes.

[27th July 1967]

WHEREAS—

(1) The city of Portsmouth (hereinafter referred to as “the city”) is a municipal borough subject to the Acts relating to municipal corporations and is a county borough within the meaning of the Local Government Act, 1888, and is under the management and local government of the lord mayor, aldermen and citizens of the city (hereinafter referred to as “the Corporation”): 1888 c. 41.

(2) It is expedient to make further and better provision with respect to lands, buildings and streets and the local government, health, welfare and improvement of the city and the finances of the Corporation:

(3) It is expedient to provide for the restriction or discontinuance of the ferry from Eastney to Hayling Island owned and operated by the Corporation:

(4) It is expedient that the further powers as by this Act provided should be conferred upon the Corporation:

(5) It is expedient that the other provisions contained in this Act be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (7) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Portsmouth Corporation Act 1967.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands and buildings.

Part III.—Streets and highways.

Part IV.—Improvement and maintenance of dwellings and houses.

Part V.—Environmental improvements.

Part VI.—Public health.

Part VII.—Public order and public safety.

Part VIII.—Finance and superannuation.

Part IX.—Restriction or discontinuance of ferry.

Part X.—Miscellaneous.

Part XI.—General.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act, 1936, have the same respective meanings, unless there be something in the subject or context repugnant to such construction. PART I
—cont.
Interpretation.
1936 c. 49.

(2) In this Act, unless the subject or context otherwise requires—

“the Act of 1933” means the Local Government Act, 1933; 1933 c. 51.

“the Act of 1936” means the Public Health Act, 1936;

“the Act of 1946” means the Acquisition of Land (Authorisation Procedure) Act, 1946; 1946 c. 49.

“the Act of 1957” means the Housing Act, 1957; 1957 c. 56.

“the Act of 1959” means the Portsmouth Corporation Act, 1959; 1959 c. xlv.

“the Act of 1960” means the Road Traffic Act, 1960; 1960 c. 16.

“the Act of 1962” means the Town and Country Planning Act, 1962; 1962 c. 38.

“apparatus” means—

(a) in relation to the electricity board or the generating board, electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by either of such undertakers; 1882 c. 56.

(b) in relation to the gas board, mains, pipes or other apparatus belonging to or maintained by that board;

(not being in any case apparatus in respect of which the relations between the Corporation and the generating board, the electricity board and the gas board are regulated by the provisions of Part II of the Public Utilities Street Works Act, 1950) and includes any works constructed for the lodging therein of apparatus; 1950 c. 39.

“the appointed day” has the meaning assigned to it by section 83 (The appointed day) of this Act;

“the city” means the city of Portsmouth;

PART I
—cont.

“contravention” includes a failure to comply and
“contravene” shall be construed accordingly;

“the Corporation” means the lord mayor, aldermen and
citizens of the city;

“the council” means the council of the city;

“daily fine” means a fine for each day on which an offence
is continued after conviction;

“development” has the same meaning as in the Act of 1962;

“the electricity board” means the Southern Electricity
Board;

“enactment” includes an enactment in this Act or in any
general or local Act and any order, byelaw, scheme or
regulation for the time being in force within the city;

“the gas board” means the Southern Gas Board;

“the general rate fund” means the general rate fund of the
city;

“the generating board” means the Central Electricity
Generating Board;

1960 c. 18.

“industrial building” has the same meaning as in the Local
Employment Act, 1960;

1952 c. 55.

“magistrates’ court” has the same meaning as in the
Magistrates’ Courts Act, 1952;

“the Minister” means the Minister of Housing and Local
Government;

1959 c. 25.

“street” has the meaning assigned to that term in the
Highways Act, 1959;

1878 c. 76.

“telegraphic line” has the same meaning as in the Telegraph
Act, 1878;

“town clerk” means the town clerk of the city.

(3) Except where the context otherwise requires any reference
in this Act to any enactment shall be construed as a reference to
that enactment as applied, extended, amended or varied by or by
virtue of any subsequent enactment including this Act.

PART II

LANDS AND BUILDINGS

4. The power of the Corporation to purchase land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land that may be acquired under any enactment. Provision of substituted sites.

5.—(1) The Corporation, by means of an order made by the Corporation and submitted to and confirmed by the confirming authority, may be authorised to create in favour of the Corporation in, under or over any land which under any enactment the Corporation may be authorised to acquire compulsorily any easement or other right in, under or over or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any lands or buildings owned or occupied, or intended to be owned or occupied, by the Corporation for the purposes of any of their undertakings, powers or duties. Compulsory acquisition of easements.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, under or over or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Act of 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946 and as if—

- (a) the expression “compulsory purchase of land” in the Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and
- (b) paragraphs 9 and 10 of Schedule 1 to the Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within subsection (1) of section 8 of the Compulsory Purchase Act, 1965. 1965 c. 56.

PART II
—cont.

(5) In this section the expression “confirming authority” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Corporation.

Acquisition
of land for
development.

6.—(1) The Corporation may purchase by agreement and (in any case where the Corporation are unable to acquire land by agreement on terms which in their opinion are reasonable) may be authorised by means of an order made by the Corporation and submitted to the Minister and confirmed by him to purchase compulsorily land in the city for the purpose of—

- (a) development by the erection of any building or the construction or carrying out of works on land for the benefit or improvement of the city; or
- (b) facilitating the provision of premises for occupation by any undertaking carried on or to be carried on there or for otherwise meeting the requirements of such undertaking (including the requirements arising from the needs of persons employed or to be employed therein).

(2) The Act of 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946.

(3) In this section the expression “undertaking” includes any trade or business, or any other activity providing employment.

(4) (a) Subject to the provisions of paragraph (b) of this subsection, the powers conferred by this section shall continue in force until 31st December, 1972.

(b) (i) The Minister may on the application of the Corporation by order extend the period referred to in paragraph (a) of this subsection until 31st December, 1982.

(ii) An order under this subsection shall be made by statutory instrument and contain such supplemental or incidental provisions as appear to the Minister to be expedient.

(iii) No order under this subsection shall have effect until approved by resolution of each House of Parliament.

(c) Nothing in this subsection shall prejudice or affect any rights, obligations or liabilities in respect of any contract made under this section.

Amendment
of section 34
of Public
Health Act,
1961.
1961 c. 64.

7. Section 34 of the Public Health Act, 1961, in its application to the council shall have effect as if the words “and after such removal may erect or maintain such hoarding or fence as they consider expedient” had been inserted at the end of subsection (1).

8. Section 16 (Loans for erection &c. of buildings) of the Act of 1959 shall have effect as if the following subsection were substituted for subsection (1) thereof:—

PART II
—cont.
Amendment
of section 16
of Act of
1959.

“(1) The Corporation may advance money to—

(a) any person for the purpose of enabling or assisting him to purchase or lease any land in the city; or

(b) the owner, purchaser or lessee of—

(i) any land in the city; or

(ii) any land (whether within or outside the city) acquired from or leased by the Corporation;

for the purpose of enabling or assisting him to build or carry out works on such land, or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.”

9. The Corporation may, if requested so to do by any person—

(1) who is the owner or intended owner or lessee of any land in the city; or

(2) who has purchased or intends to purchase or take on lease from the Corporation any land (whether within or outside the city);

Power to
Corporation
to assist
industry.

being in either case land upon which an industrial building is built or is intended to be built, extended or improved, carry out any work required in relation to the preparation or improvement of the site for that building or for the provision or improvement of services or facilities on which any trade or business carried on or intended to be carried on in such building depends, and may with the approval of the Minister make grants or loans towards the cost of such works or of the provision or improvement of such services or facilities or both:

Provided that nothing in this section shall authorise the Corporation to carry out works for the provision or improvement of services which it is the function of statutory undertakers to provide or improve.

10.—(1) The Corporation and any person having an estate or interest in any land within the city may enter into an agreement which may provide for all or any of the following:—

Agreements
with
developers.

(a) determining the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of the development of any part of that land;

PART II
—cont.

- (b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;
- (c) providing that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Corporation shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over that land or over a part or parts of any building or structure which is comprised in the development and the maintenance and cleansing of the public rights of way so dedicated including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;
- (e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for or in connection with development of that land;
- (f) any other related or consequential matters.

(2) (a) An agreement entered into under the foregoing subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the Local Land Charges Register, be enforceable by the Corporation against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the foregoing subsection or any person deriving title by, through or under him failing to perform any of the positive covenants contained in the agreement the Corporation may after giving not less than twenty-one days' notice of their intention so to do enter on the land and do the work in default and the expenses incurred by the Corporation shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement an agreement entered into under the foregoing subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Corporation may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

11.—(1) If the Corporation—

- (a) acquire land by agreement; or
- (b) enter into an agreement to acquire land; or
- (c) have acquired land by agreement before the passing of this Act;

Suspension
of restrictive
covenants.

for a purpose for which they are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily and the land is affected by any restriction arising under covenant or otherwise (other than a restriction imposed by any enactment) as to the user thereof or the building thereon, the council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Corporation shall—

- (a) in four successive weeks publish in one or more local newspapers circulating in the locality in which the land referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the locality where a copy of the resolution and map may be inspected, and specifying the time, not being less than three months from the first publication of the notice, within which and the manner in which objections to the suspension of the restriction can be made;
- (b) serve by registered post or the recorded delivery service on every person who appears to them after diligent inquiry to be entitled to the benefit of the restriction to which the resolution relates a notice containing the like particulars to those specified in the foregoing paragraph of this subsection; and
- (c) cause a notice containing the like particulars to those specified in paragraph (a) of this subsection to be posted in a prominent position on the land to which the resolution relates once at least in each of four successive weeks.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister within the period specified in the notice and by sending a copy thereof to the Corporation.

PART II
—cont.

(5) If any objection is duly made as aforesaid and is not withdrawn the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister and, before confirming the resolution, the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and, after considering the report of the person who held the inquiry, may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section or if all objections so made are withdrawn the restriction shall be suspended on and after the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, the last objection or the date on which the Corporation acquire the land, whichever is the latest.

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution the restriction shall be suspended on and after such date as the appropriate Minister shall determine, not being earlier than the date on which the Corporation acquire the land.

1965 c. 56.

(7) The Corporation shall pay compensation in accordance with the provisions of section 10 of the Compulsory Purchase Act 1965 to any person entitled to the benefit of a restriction suspended under the powers of this section who suffers loss in consequence thereof, and the amount of such compensation shall be determined in case of dispute in accordance with the Land Compensation Act, 1961.

1961 c. 33.

(8) Any restriction suspended under the powers of this section shall be unenforceable so long as the Corporation are the owners of the land to which the restriction relates, or, if the Corporation convey the land to any body for any of the purposes of the Education Acts, 1944 to 1964, so long as the land is used by that body for the purpose of those Acts and, if compensation is paid by the Corporation under subsection (7) of this section in respect of the suspension of a restriction relating to the building upon or use of land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that land may be used for a particular purpose, the restriction shall after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts, 1944 to 1964, remain unenforceable only so long as the land is used for that purpose.

(9) If the Corporation dispose of any land to which the restriction suspended under the powers of this section relates

they shall in two successive weeks publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(10) Nothing in this section shall apply to any restriction for the protection of or for securing access to apparatus of any statutory undertakers contained in any deed, wayleave, agreement or other instrument.

(11) In this section the expression “ the appropriate Minister ” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Corporation have acquired or agreed to acquire that land.

12. Notwithstanding anything in the Lands Clauses Consolidation Act, 1845, or the Compulsory Purchase Act 1965, it shall be lawful for the High Court at any time not being less than twelve years after any sum has been paid by the Corporation into the Supreme Court in pursuance of section 76 of the said Act of 1845 or section 9 of the said Act of 1965 or paid by the Corporation into the Supreme Court by way of security in pursuance of section 85 of the said Act of 1845 or Schedule 3 to the said Act of 1965 to order upon application by the Corporation that the money so paid or the fund in which the sum shall have been invested together with the accumulations thereto shall be repaid or transferred to the Corporation:

Recovery of deposits under Lands Clauses Acts or Compulsory Purchase Act 1965.
1845 c. 18.
1965 c. 56.

Provided that upon the application of any person making claim to the money paid as aforesaid or any part thereof or to the lands in respect of which the same shall have been paid or any part of such lands or any interest in the same the High Court may order such money as has been repaid or transferred to the Corporation under the provisions of this section or any part thereof to be paid to the person making such claim and may make such other order in the premises as the High Court shall think fit.

13. At any time after a period of six years from the date of the receipt by the Corporation of an application for permission for development the Corporation may, having made the necessary entries in the register in accordance with the provisions of article 14 of the Town and Country Planning General Development Order, 1963, and retained the application and the copy of the plan or plans approved in connection therewith, together with any industrial development certificate or office development permit issued in connection therewith, destroy any of the other documents received by them in connection with the application.

Destruction of documents connected with applications for permission for development.

14. For the avoidance of doubt it is hereby declared that the Corporation may, on being requested so to do, produce, for inspection by any person who satisfies them or their duly authorised

Inspection of plans relating to applications for planning permission.

PART II
—*cont.*

officer that he has a genuine interest therein, any plans or drawings which have been lodged or deposited with them in connection with any application for planning permission.

PART III

STREETS AND HIGHWAYS

Amendment
of section 26
of Act of
1960.

15. Section 26 of the Act of 1960 shall have effect in its application to the city and to the council as if—

(1) in subsection (1) after paragraph (e) there were added the following paragraphs:—

“ or

(f) for the proper planning or the improvement of the environment or the amenities of any part of a county borough; or

(g) for improving or facilitating the movement, convenience or comfort of persons or other traffic using the road or any part of the road.”;

(2) in subsection (3) after the words “ exceptions so specified,” there were inserted the words “ or by foot passengers ” and after paragraph (e) there were added the following paragraph:—

“ (f) prohibiting the use of roads by vehicular traffic or by foot passengers.”;

and after the words “ express carriage ” there were inserted the words “ and no order under this section which could not have been made if this section had not been amended by section 15 (Amendment of section 26 of Act of 1960) of the Portsmouth Corporation Act 1967 shall be confirmed by the Minister unless he is satisfied—

(i) in the case of an order prohibiting the use by vehicular traffic of a road or any part of the width thereof upon which any service of stage carriages or express carriages is operated that there is an alternative road or part of the width of a road suitable for use by such carriages and convenient for the persons using or desiring to use them; and

(ii) that the order would not have the effect of preventing such access to, or egress from, any station or depot used by stage carriages or express carriages as may be reasonably required for vehicles using such station or depot;

- (3) the following new subsection were inserted after subsection (3):—

PART III
—cont.

“(3A) In any case in which the authority intend to make an order under this section which could not have been made if this section had not been amended by section 15 (Amendment of section 26 of Act of 1960) of the Portsmouth Corporation Act 1967 and the effect of such order would be to prohibit the use of a road by vehicular traffic the authority shall consult with the electricity board, the gas board and such other persons as appear to them to be affected by the order and such representative organisations as they think fit and if, after such consultation as aforesaid, the authority determine that access to or within reasonable distance of any premises where trade or business is carried on, situated on or adjacent to the road is essential for the purpose of the loading and unloading of vehicles, the order shall make such provision for such access (either with or without the permission of the authority or a police constable in each case) as the authority may determine”;

- (4) in subsection (4) after the words “for vehicles of any class or description” there were inserted the words “or for foot passengers” and after the words “for vehicles of that class or description” there were inserted the words “or for foot passengers”;
- (5) in subsection (5) after the words “last foregoing subsection” there were inserted the words “(except in so far as it relates to foot passengers)” and after the words “buildings on or near it,” there were inserted the words “or for improving or facilitating the movement, convenience or comfort of persons or other traffic using the road or any part of the road or for the improvement of the environment or the amenities of any part of a county borough”;
- (6) in subsection (7) for the words from the beginning to “liable” there were substituted the words “A person who contravenes or who uses a vehicle or causes or permits a vehicle to be used in contravention of a traffic regulation order shall be liable”.

16. Section 28 of the Road Traffic Act, 1962, shall have effect in its application to the city and the council as if in paragraph (a) of subsection (1) after the words “under section twenty-six of

Experimental
traffic
schemes.
1962 c. 59.

PART III
—cont.

the principal Act ” there were inserted the words “ as amended by section 15 (Amendment of section 26 of Act of 1960) of the Portsmouth Corporation Act 1967.”

Extension of
power to
make traffic
regulation
orders.

17.—(1) The power of the Corporation under section 26 of the Act of 1960, to make traffic regulation orders shall extend to enable the Corporation, by any such order—

- (a) to provide that any prohibition, restriction or regulation imposed by the order on the use of any specified road or any specified part of a road shall be operative when indicated by a traffic sign;
- (b) to prohibit, restrict or regulate the use by foot passengers of any specified road or any specified part of a road:

Provided that any such order made for a purpose referred to in paragraph (a) or (b) of this subsection shall, notwithstanding any provision of subsection (4) of section 27 of the Act of 1960, not have effect unless confirmed by the Minister of Transport.

(2) In this section—

“ specified ” means specified in the order in question;

“ traffic sign ” means a traffic sign prescribed or authorised under subsection (2) of section 51 of the Act of 1960, and for the time being placed by the Corporation in accordance with section 52 of that Act; and for the purposes of any such order as is referred to in paragraph (a) of subsection (1) of this section any such traffic sign placed on or near a road shall be deemed to have been lawfully so placed unless the contrary is proved.

(3) Subsection (7) of the said section 26 shall apply in respect of a foot passenger who contravenes a traffic regulation order as if for the words “ a vehicle or causes or permits a vehicle to be used ” there were substituted the words “ a road ”.

1962 c. 59.

(4) Section 32 of the Road Traffic Act, 1962 (which authorises an authority to place bollards or other obstructions for preventing the passage of vehicles at any point of a road where such passage is prohibited by an order made by that authority under section 26 of the Act of 1960), shall extend to enable the Corporation to place such bollards or other obstructions, including any necessary walls, barriers or kerbs, for the purposes of prohibiting, restricting or regulating the use of any road or any part of any road by foot passengers, at or near any point at which such use is prohibited, restricted or regulated by an order made under the said section 26 as extended by paragraph (b) of subsection (1) of this section.

PART IV

IMPROVEMENT AND MAINTENANCE OF DWELLINGS AND HOUSES

18. In this Part of this Act unless the context otherwise requires—

Interpretation
for this Part
of Act.

“dwelling” means a building or part of a building occupied or intended to be occupied as a separate dwelling including, in particular, a flat;

“financial year” means a period of twelve months ending on 31st March;

“house” includes any yard, garden, outhouses, and appurtenances belonging thereto or usually enjoyed therewith; and any part of a building which is occupied or intended to be occupied as a separate dwelling including, in particular, a flat;

“lease” includes an underlease, sub-lease or any tenancy;

“local improvement grant” has the meaning assigned to it by section 20 (Local improvement grants) of this Act;

“local maintenance grant” has the meaning assigned to it by section 21 (Local maintenance grants) of this Act;

“owner” means the person who receives any rent (including a rack-rent) payable by the tenant (as defined in this section) of the premises, whether on his own account or as agent or trustee for any other person, or who would so receive the rent if the premises were let at a rack-rent and for the purposes of this definition “rack-rent” means rent which is not less than two-thirds of the full net annual value of the premises;

“regulated tenancy” has the meaning assigned to it by subsection (4) of section 1 of the Rent Act 1965; 1965 c. 75.

“the Rent Acts” means the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939, or any of those Acts;

“statutory tenancy” has the same meaning as in the Housing Repairs and Rents Act, 1954; 1954 c. 53.

“tenant” includes a sub-tenant and a tenant (as defined in subsection (1) of section 12 of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920) who retains possession by virtue of the Rent Acts or subsections (1) to (3) of section 13 of the Rent Act 1965, and not as being entitled to a tenancy, but does not include a tenant holding under a lease granted for a term certain of more than twenty-one years at a rent of less than two-thirds of the full net annual value of the demised premises or a mortgagee in possession. 1920 c. 17.

PART IV
—cont.

Application of
this Part of
Act.

1959 c. 33.

19.—(1) This Part of this Act applies to a dwelling (not being a dwelling in respect of which an application for a standard grant under the House Purchase and Housing Act, 1959, may be approved) or house (as the case may be) which is either—

- (a) situate in an area in the city (in this section referred to as a “local improvement area”) for the time being designated by resolution of the council and shown on a map or maps deposited in accordance with subsection (2) of this section; or
- (b) a dwelling or house elsewhere in the city if the council, after consultation with the Minister, by resolution so determine.

(2) As soon as practicable after designating a local improvement area under subsection (1) of this section the council shall deposit at the office of the town clerk for public inspection at all reasonable hours a map or maps showing the local improvement area.

(3) The council may from time to time by resolution vary a local improvement area or designate an additional local improvement area or additional local improvement areas and shall as soon as practicable after passing such resolution amend the map or maps deposited under subsection (2) of this section so as to show the local improvement area as so varied or (as the case may be) the additional local improvement area or local improvement areas.

Local
improvement
grants.

20. Subject to the provisions of this Part of this Act the Corporation may, if they think fit, give assistance in respect of the improvement of any dwelling to which this Part of this Act applies by the owner thereof by the execution of such works as may in the opinion of the Corporation be required for the dwelling to be provided, for the exclusive use of its occupants, with all or any of the following amenities:—

- (a) a fixed bath or shower in a bathroom or elsewhere;
- (b) a wash-hand basin;
- (c) a hot and cold water supply at a fixed bath or shower;
- (d) a hot and cold water supply at a wash-hand basin;
- (e) a hot and cold water supply at a sink;
- (f) a water closet; and
- (g) facilities for storing food;

by way of making a grant (hereafter in this Part of this Act referred to as “a local improvement grant”) in respect of the cost of executing the works, if an application in that behalf is made by the owner to the Corporation and approved by them before the works are begun and the works are executed to their satisfaction within such period (if any) as may be determined by the Corporation at the time of the determination of the amount of the grant.

21. Subject to the provisions of this Part of this Act and without prejudice to the exercise by them of the powers vested in them by Part III of the Act of 1936, the Corporation may, if they think fit, give assistance in respect of the maintenance of any house to which this Part of this Act applies by the owner thereof by the execution of such works of repair to the structure or exterior of the house as may in the opinion of the Corporation be required in the interests of the safety, welfare or health of the persons occupying or who may occupy the house or to prevent deterioration of the structure of the house, or in the interests of the amenity of the neighbourhood in which the house is situate, by way of making a grant (hereafter in this Part of this Act referred to as "a local maintenance grant") in respect of the cost of executing the works, if an application in that behalf is made by the owner to the Corporation and approved by them before the works are begun and the works are executed to their satisfaction within such period (if any) as may be determined by the Corporation at the time of the determination of the amount of the grant.

PART IV
—cont.

Local
maintenance
grants.

22.—(1) An application under this Part of this Act must specify the dwelling or house and the nature and extent of the works proposed to be executed and must also contain a statement that the owner is the occupier of the dwelling or house or that the occupier has consented in writing to the making of the application.

Applications
for and
amounts of
grants.

(2) The amount of a local improvement grant in respect of any dwelling shall be such amount or such proportion of the cost of the proposed works as the Corporation may determine at the time of approving the application but shall not exceed one-half of the cost shown, to the satisfaction of the Corporation, to have been incurred in executing the works in respect of which it is made, or the sum of one hundred and fifty-five pounds (whichever is the less).

(3) When approving an application for a local improvement grant in respect of a dwelling the Corporation shall by notice inform the owner of the dwelling of the period during which it is in their opinion likely to be available for use as a dwelling.

(4) The amount of a local maintenance grant in respect of any house shall be such amount or such proportion of the cost of the proposed works as the Corporation may determine at the time of approving the application but shall not exceed one-half of the cost shown to the satisfaction of the Corporation to have been incurred in executing the works in respect of which it is made, or the sum of one hundred and fifty-five pounds (whichever is the less).

23.—(1) A local improvement grant or local maintenance grant may be made subject to such conditions with respect to the

Conditions.

PART IV
—cont.

dwelling or house as the Corporation may impose at the time of the determination of the amount of the grant under subsection (2) or subsection (4) of section 22 (Applications for and amounts of grants) of this Act and any such conditions shall be observed with respect to the dwelling or house for the period specified in subsection (2) of this section and shall, so long as they are required to be observed, be deemed to be part of the terms of any lease, agreement for a lease or tenancy of the dwelling or house, and shall be enforceable accordingly.

(2) The period during which conditions are to be observed is a period of three years from the date of the completion of the works in respect of which the grant is made or such longer period as the Corporation may prescribe in the case of any particular house in respect of which a local maintenance grant is made.

(3) Without prejudice to the generality of the provisions of subsection (1) of this section the Corporation may impose all or any of the following conditions:—

(a) that the dwelling or house shall not be used for purposes other than those of a private dwelling-house except with the consent in writing of the Corporation;

(b) that, unless the Corporation otherwise agree, the dwelling or house shall, at all times at which it is not occupied—

(i) by the applicant for the local improvement grant or local maintenance grant or a member of his family; or

(ii) in the case of a dwelling or house which, or an interest in which, has since before the application for the local improvement grant or local maintenance grant was made been vested in the personal representatives of a deceased person, or in trustees, by a person who on the death, or under the trust, has become interested in the dwelling or house or interest or the proceeds of sale thereof, or by a member of the family of such person; or

(iii) by a person who on the death of the applicant has (whether or not in consequence of a disposition by will) become beneficially entitled to, or to an interest in, the interest of the applicant in the dwelling or house or the proceeds of sale thereof, or by a member of the family of such a person;

be let or kept available for letting at a rent not exceeding the rent which, by virtue of paragraph (c) of this subsection, may be paid by an occupier of the dwelling or house;

(c) that the rent payable by the occupier of the dwelling or house shall not exceed—

PART IV
—cont.

(i) in the case of—

(I) a tenancy to which the Rent Acts apply, which is not a regulated tenancy; or

(II) a statutory tenancy arising on the termination of such a tenancy as is mentioned in sub-paragraph (I) of this paragraph;

the limit ascertained under section 1 of the Rent Act, 1957; and

1957 c. 25.

(ii) in any other case such rent as the Corporation may from time to time fix:

Provided that—

(A) references in the Rent Act, 1957, or the Rent Act 1965, to a grant made under section 4 of the House Purchase and Housing Act, 1959, shall be deemed to include a reference to a local improvement grant made under this Part of this Act; 1965 c. 75. 1959 c. 33.

(B) if the Corporation by a condition imposed under this subsection fix a rent, references in the Rent Act 1965 to a limit imposed by a condition under section 33 of the Housing (Financial Provisions) Act, 1958, shall be deemed to include a reference to a rent so fixed; 1958 c. 42.

(C) if the Corporation do not impose a condition under paragraph (c) (ii) of this subsection in respect of a dwelling or house which is the subject of a regulated tenancy, the rent payable by the occupier shall not exceed the limit imposed by the Rent Act 1965;

(d) that the owner of the dwelling or house shall, on being required so to do by the Corporation, certify that the conditions imposed under paragraphs (a), (b) and (c) of this subsection are being observed with respect to the dwelling or house;

(e) that in the event of the breach of any of the conditions imposed under the foregoing provisions of this subsection the Corporation may, if they think fit, require the owner for the time being of the dwelling or house to repay to them and the owner shall repay to them such part of the amount of the local improvement grant or local maintenance grant as is proportionate to the extent to which the period during which conditions are required by virtue of subsection (2) of this section to be observed with respect to the dwelling or house remains unexpired at the date of the occurrence of the breach;

PART IV
—cont.

(f) that upon the repayment by the owner of the amount of the local improvement grant or local maintenance grant, or such part thereof as the Corporation consider to be reasonable in the circumstances, the dwelling or house shall be released from any conditions imposed by the Corporation under this section;

1958 c. 42.

(g) that any amounts repayable under paragraph (e) or paragraph (f) of this subsection shall bear compound interest at the rate prescribed for the purposes of subsection (2) or subsection (3) of section 34 of the Housing (Financial Provisions) Act, 1958, by regulations made by the Minister under the said Act of 1958, and with yearly rests.

1925 c. 22.

1926 c. 11.

(4) A condition imposed under this section shall be treated as a local land charge for the purpose of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926.

Agreements
with owners.

24.—(1) If the Corporation decide to make a local improvement grant in respect of a dwelling or a local maintenance grant in respect of a house, the Corporation and the owner of the dwelling or house may (with the consent in writing of the occupier thereof if the owner is not the occupier) enter into and carry into effect an agreement for the execution by the Corporation as agents for the owner of the works in respect of which the Corporation make the grant.

(2) An agreement made under subsection (1) of this section may impose such conditions as the Corporation are authorised to impose under section 23 (Conditions) of this Act and such conditions shall be observed in like manner and for a like period as conditions imposed under the said section 23 and shall be enforceable accordingly.

Notice of
intention to
execute works.

25. Where it appears to the Corporation—

(1) that the living conditions in a dwelling to which this Part of this Act applies are such that it is desirable in the interests of the welfare or health of persons occupying or who may occupy the dwelling that all or any of the amenities specified in section 20 (Local improvement grants) of this Act should be provided in the dwelling;
or

(2) that works of repair are required to the structure of a house to which this Part of this Act applies in the interests of the safety, welfare or health of persons occupying or who may occupy the house or are necessary to prevent deterioration of the structure of the house or interference with the amenity of the neighbourhood in which the house is situate;

PART IV
—cont.

and the owner of the dwelling or house is not willing to execute the works for the purpose with the assistance of a local improvement grant or a local maintenance grant, or to enter into and carry into effect an agreement for the purpose in accordance with the provisions of section 24 (Agreements with owners) of this Act, or that an occupier of the dwelling or house has withheld his consent thereto, then the Corporation may give notice to the owner and occupier of such dwelling or house of their intention after the expiration of such period (not being less than six weeks) from the date of the service of the notice as may be specified in the notice to execute such works to the dwelling or house as may be specified in the notice, being works in respect of which the Corporation might have made a local improvement grant under section 20 (Local improvement grants) of this Act or a local maintenance grant under section 21 (Local maintenance grants) of this Act if the works had been executed by the owner and being works the expense of executing which would not exceed three hundred and ten pounds.

26.—(1) The owner of a dwelling or house upon whom a notice is served under section 25 (Notice of intention to execute works) of this Act may, within six weeks from the date of the service of the notice, appeal to the county court on any of the following grounds:—

- (a) that the Corporation have unreasonably refused to make a local improvement grant or a local maintenance grant or to enter into an agreement under section 24 (Agreements with owners) of this Act; or
- (b) that the works specified in the notice are unreasonable in character or extent; or
- (c) that the dwelling or house is not or is no longer in such condition that the terms of section 25 (Notice of intention to execute works) of this Act apply to it; or
- (d) that some person other than the appellant will, as the holder of an estate or interest in the dwelling or house, derive a benefit from the execution of the works and that that person ought to pay the whole or part of the cost of the execution of the works.

(2) The occupier of a dwelling or house upon whom a notice is served under section 25 (Notice of intention to execute works) of this Act may within six weeks from the date of the service of the notice appeal to the county court on the ground that the carrying out of works specified in the said notice will cause unreasonable hardship to him or to any member of his family residing with him, regard being had to the age, health and any infirmity of the occupier or any such member.

PART IV
—*cont.*

(3) On an appeal to the county court under this section, the judge may make such order either confirming or quashing or varying the notice as he thinks fit.

(4) Where the grounds on which an appeal under this section is brought include the grounds specified in paragraph (d) of subsection (1) of this section, the judge may, on the hearing of the appeal, make such order as he thinks fit with respect to the payment to be made by that other person to the appellant.

Execution of
works by
Corporation.

27.—(1) Unless on an appeal under section 26 (Appeal to county court) of this Act the court has quashed the notice referred to in that section, the Corporation may at any time after the expiration of the period specified in the notice, or if the owner or occupier has appealed under the said section 26, at any time after the appeal is finally determined or withdrawn or fails for want of prosecution, enter the dwelling or house and execute the works specified in the notice or, as the case may be, in the notice as varied by the court.

(2) Upon the completion of the works referred to in subsection (1) of this section being works in respect of which the Corporation might have made a local improvement grant under section 20 (Local improvement grants) of this Act if the works had been executed by the owner—

(a) the Corporation may impose such conditions as they would have been authorised to impose under section 23 (Conditions) of this Act if they had made a local improvement grant and the provisions of this Part of this Act shall apply to such conditions as if they had been imposed under the said section 23; and

1957 c. 25.
1965 c. 75.

(b) for the purposes of the Rent Act, 1957, and the Rent Act 1965, the owner of the dwelling shall be deemed to have carried out the works and to have expended on the improvement an amount equivalent to the cost of the works and the Corporation shall be deemed to have made a grant to the owner under section 4 of the House Purchase and Housing Act, 1959, equal to one-half of the cost of the works; and

1959 c. 33.

(c) in respect of each financial year after the completion of the works the owner of the dwelling shall pay to the Corporation and the Corporation may recover from the owner a sum equal to $12\frac{1}{2}$ per cent. of one-half of the cost of the works by two equal instalments payable in arrear on the 30th September and the 31st March in each financial year:

Provided that—

PART IV
—cont.

- (i) the Corporation shall make to an owner who pays an instalment under paragraph (c) of this subsection on or before the date upon which it became due an allowance equal to 10 per cent. of the amount payable;
- (ii) unless the works are completed on the 31st March in any year the sum payable in respect of the period from the date of the completion of the works until the next 31st March shall be the appropriate proportion of the sum payable in respect of a financial year;
- (iii) if the owner of the dwelling who is not also the occupier thereof, after taking all such action as he is lawfully entitled to take, is unable to recover either by way of an increase of the rent of the dwelling in consequence of the improvement effected by the execution of the works, or by any other means, a sum equal to $12\frac{1}{2}$ per cent. of one-half of the cost of the works, the amount which the owner shall pay and which the Corporation may recover under paragraph (c) of this subsection in respect of each financial year shall be an amount equal to such sum (if any) as he is able to recover as aforesaid in respect of that financial year and paragraph (i) of this proviso shall apply as if that amount were the amount payable;
- (iv) if and when the aggregate of the sums paid in respect of a dwelling under paragraph (c) of this subsection equals the total cost of the works no further sum shall be payable under this section in respect of those works.

(3) Upon the completion of the works referred to in subsection (1) of this section if—

- (a) the works are works in respect of which the Corporation might have made a local maintenance grant under section 21 (Local maintenance grants) of this Act if the works had been executed by the owner; and
- (b) the Corporation are satisfied that the house upon which the works have been executed is in such condition as not to be unfit for human habitation and that it is likely to remain in that condition and available for use as a dwelling for a period of not less than the period specified in subsection (2) of section 5 of the House Purchase and Housing Act, 1959;

1959 c. 33.

the Corporation may impose such conditions as they would have been authorised to impose under section 23 (Conditions) of this Act if they had made a local maintenance grant and may recover from the owner of the house an amount equal to the

PART IV
—cont.

whole or such proportion of the cost of the works as they may determine. The provisions of this Part of this Act shall apply to conditions imposed under this subsection as if they had been imposed under the said section 23.

(4) The execution of works under this section shall not give rise to any liability on the part of a lessee to reinstate the premises at any time in the condition in which they were before the works were executed, or to any liability for failure so to reinstate the premises.

(5) The Corporation may (if they think fit) repair and maintain any works executed by them under this section being works in respect of which the Corporation might have made a local improvement grant under section 20 (Local improvement grants) of this Act if the works had been executed by the owner.

Purchase
notice.

28. The owner of a dwelling served with a notice under section 25 (Notice of intention to execute works) of this Act to execute works being works in respect of which the Corporation might have made a local improvement grant if the works had been executed by the owner or, if such notice was served on a person as being one who received the rack-rent of the dwelling as agent or trustee for any other person, that other person may serve a counter-notice on the Corporation at any time within six weeks from the date on which the notice is served (or within such longer period as may be agreed between the owner or such other person as aforesaid and the Corporation) requiring the Corporation to purchase his interest in the premises and the like consequences shall follow upon the service of such counter-notice as if it were a notice served in accordance with the provisions of subsection (1) of section 59 of the Housing Act 1964.

1964 c. 56.

Compensation
on
compulsory
acquisition.

29.—(1) If the Corporation at any time acquire compulsorily under the powers of any enactment any dwelling upon which work has been executed under section 27 (Execution of works by Corporation) of this Act, in assessing the compensation payable in respect of the said dwelling there shall be deducted from the amount of the compensation, which but for the provisions of this subsection would be payable, an amount equivalent to the amount expended by the Corporation in the execution of the work less—

(a) the aggregate of the amounts paid to the Corporation by the owner under subsection (2) of the said section 27; and

(b) any amount recovered by the Corporation from the owner under subsection (3) of that section:

Provided that in no case shall the compensation be reduced below the compensation which would be payable under subsection (2) of section 59 of the Act of 1957.

(2) If—

PART IV
—cont.

- (a) the Corporation make a local improvement grant in respect of the cost of executing works in a dwelling; and
- (b) the Corporation acquire the dwelling compulsorily under the powers of any enactment at any time within the period specified in a notice under subsection (3) of section 22 (Applications for and amounts of grants) of this Act or within the period of eight years from the date of the making of the local improvement grant (whichever is the earlier); and
- (c) the amount of the compensation would but for the provisions of this subsection be the amount of compensation payable under subsection (2) of section 59 of the Act of 1957;

there shall be added to the compensation which would be so payable an amount equal to $12\frac{1}{2}$ per cent. of one-half of the cost of executing the works in respect of each year by which the period from the date of the payment of the local improvement grant until the date of the compulsory acquisition is less than the said period specified in the said notice or the said period of eight years (whichever is the less).

30.—(1) The Minister may by order vary the sums mentioned in subsections (2) and (4) of section 22 (Applications for and amounts of grants) of this Act and section 25 (Notice of intention to execute works) of this Act. Power of Minister to vary certain sums.

(2) An order made under this section may be varied or revoked by a subsequent order.

31. Subsection (5) of section 17 and subsection (1) of section 18 of the Housing Act 1964 shall have effect in its application to the city and the council as if “three years” were substituted for “five years” in those subsections. Suspended improvement notices.
1964 c. 56.

PART V

ENVIRONMENTAL IMPROVEMENTS

32.—(1) Where it appears to the council upon consideration of any representation or of any other information available to them that any predominantly residential area of the city ought to be declared an environmental improvement area then the Declaration of environmental improvement area.

PART V
—*cont.*

council may pass a resolution declaring, by reference to a map defining the same, such area to be an environmental improvement area for the purposes of this Part of this Act.

(2) As soon as may be after the passing of a resolution under this section the Corporation shall publish in one or more local newspapers circulating in the city a notice stating the area that has been declared an environmental improvement area, giving sufficient particulars to identify the limits of the area and naming a place where a copy of the resolution and of the map defining the area may be seen at all reasonable hours.

Power to
carry out
environmental
improve-
ments.

33.—(1) In an environmental improvement area the Corporation may—

- (a) on any land owned by them, or on any other land by agreement with any person having an interest in such land, provide open spaces, gardens and children's play spaces, pedestrian ways and precincts, new or improved means of vehicular and pedestrian access to the rear of dwellings, facilities for the accommodation of the vehicles belonging to residents in such area, trees, shrubs and plants;
- (b) provide street furniture, and repair and face exposed flank walls and boundary walls;
- (c) erect any building or construct or carry out such works as they may consider to be necessary in connection with any works mentioned in paragraphs (a) and (b) of this subsection or in connection with any order made in the exercise of the power given by section 26 of the Act of 1960 as extended by section 15 (Amendment of section 26 of Act of 1960) of this Act for the proper planning or the improvement of the environment or the amenities of any part of the city.

(2) The Corporation may repair and maintain any environmental improvement or any building erected or any works constructed or carried out under the power conferred by this section, and generally may deal with any environmental improvement or such works in a proper course of management.

(3) In this Part of this Act—

“environmental improvement” means any provision made or to be made in the exercise of the power given by this section and any order made in the exercise of the power given by section 26 of the Act of 1960 as extended by section 15 (Amendment of section 26 of Act of 1960) of this Act for the proper planning or the improvement of the environment or the amenities of any part of the city;

“ street furniture ” includes seats, receptacles for litter, tubs and other receptacles for trees, shrubs and plants and racks for bicycles.

PART V
—cont.

34.—(1) The Corporation may purchase by agreement and Acquisition (in any case where the Corporation are unable to acquire land of land for by agreement on terms which in their opinion are reasonable) environmental may be authorised by means of an order made by the Corporation improvements and submitted to the Minister and confirmed by him to purchase compulsorily land within an environmental improvement area for the purpose of carrying out or providing any environmental improvement.

(2) The Act of 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946.

(3) Before exercising their power to make a compulsory purchase order under this section the Corporation shall satisfy themselves that in so far as suitable residential accommodation does not already exist for persons who will be displaced from any such accommodation as a result of the exercise of the powers contained in this section, they can provide or secure the provision of such accommodation in advance of the displacements which may become necessary.

(4) Section 144 of the Housing Act, 1957, shall not have effect 1957 c. 56. in relation to any acquisition of land by the Corporation under this section.

(5) Before submitting an order to the Minister under subsection (1) of this section for the compulsory purchase of land on or in which is situated any apparatus belonging to a member of the Relay Services Association of Great Britain the Corporation shall give to that member not less than fourteen days' written notice of their intention so to do, and shall take into consideration any representations he may make to the Corporation within forty-eight hours of the receipt of such notice with a view to the implementation of subsection (3) of section 35 (Extinguishment of rights over land compulsorily acquired) of this Act in relation to that apparatus.

35.—(1) Subject to the provisions of this section, upon the completion by the Corporation of a compulsory acquisition of land under section 34 (Acquisition of land for environmental improvements) of this Act, all private rights of way and rights of laying down, erecting, continuing or maintaining any apparatus on, under or over the land shall be extinguished, and any such apparatus shall vest in the Corporation. Extinguish-ment of rights over land compulsorily acquired.

PART V
—cont.

(2) The foregoing subsection shall not apply to any right vested in, or apparatus belonging to, statutory undertakers for the purpose of the carrying on of their undertaking.

(3) In respect of any right or apparatus not falling within the last foregoing subsection, subsection (1) of this section shall have effect subject—

(a) to any direction given by the Corporation before the completion of the acquisition that subsection (1) of this section shall not apply to any right or apparatus specified in the direction; and

(b) to any agreement which may be made (whether before or after the completion of the acquisition) between the Corporation and the person in or to whom the right or apparatus in question is vested or belongs.

(4) Any person who suffers loss by the extinguishment of a right or the vesting of any apparatus under this section shall be entitled to compensation from the Corporation.

1961 c. 33.

(5) Any compensation payable under this section shall be determined in accordance with the Land Compensation Act, 1961.

(6) For the removal of doubt it is hereby provided that this section shall not apply to any telegraphic line belonging to or used by the Postmaster General.

PART VI

PUBLIC HEALTH

Securing of
unoccupied
houses under
Act of 1957.

36.—(1) Where the Corporation have under section 16 of the Act of 1957 accepted an undertaking that a house will not be used for a human habitation or where the Corporation have—

(a) by a closing order made under sections 17, 18, 26 or 35 of the Act of 1957 ordered any house or building or any part thereof to be closed; or

(b) by a clearance order under section 44 of the Act of 1957 ordered any building or any part thereof to be vacated and in such a case it appears to the Corporation that the building or the part thereof (as the case may be) will not be or is unlikely to be demolished within six weeks from the date when in pursuance of the order the premises are vacated;

they may, if the premises are not effectively secured so as to prevent the entry into the premises when unoccupied of any person other than a person authorised by the owner or the

Corporation, after giving to the owner not less than forty-eight hours' notice of their intention to do so, themselves do such things in relation to the house or building or part thereof as will so secure the premises against entry.

PART VI
—cont.

(2) Nothing in this section shall prejudice the powers of the Corporation to take steps to deal with any dangerous building under section 25 of the Public Health Act, 1961.

1961 c. 64.

(3) In this section—

“ house ” has the same meaning as in the Act of 1957;

“ owner ” includes any person deemed to be the person having control of the house for the purposes of Part II of that Act.

37.—(1) As from the appointed day a person shall not carry on the business of a person who tattoos or offers to tattoo members of the public in the city on premises occupied by him unless he is registered by the Corporation under this section and the premises are so registered.

(2) On application in that behalf made to the Corporation by any person for registration of the applicant or of any premises and (if the application relates to premises) on his furnishing them with particulars of the premises the Corporation shall register the applicant or the premises and issue to the applicant a certificate of registration.

(3) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of premises registered under this section and of the instruments, towels, materials and equipment used therein; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(4) If any person carries on business in contravention of subsection (1) of this section he shall be liable to a fine not exceeding twenty pounds and a daily fine not exceeding five pounds.

(5) If any person contravenes any byelaw made under subsection (3) of this section he shall be liable to a fine not exceeding five pounds and if he is registered the court by which he is

PART VI
—cont.

convicted may instead of or in addition to imposing a fine order the suspension or cancellation of his registration and of the registration of the premises in which the offence was committed if they are occupied by him.

1952 c. 55.

(6) A court ordering the suspension or cancellation of registration under the last foregoing subsection may suspend the operation of the order until the fourteen days prescribed by subsection (1) of section 84 of the Magistrates' Courts Act, 1952, for giving notice of appeal to quarter sessions have expired:

Provided that if notice of appeal is given within the said fourteen days an order made under this subsection shall be suspended until the appeal is finally determined or abandoned.

(7) Where the registration of any person is cancelled by order of a court under subsection (5) of this section—

(a) he shall within seven days deliver up to the Corporation the cancelled certificates of registration and if he fails to do so he shall be liable to a fine not exceeding twenty shillings and a daily fine not exceeding ten shillings; and

(b) he shall not again be registered by the Corporation under this section except in pursuance of a further order of a magistrates' court made on his application.

(8) The occupier of premises registered under this section shall keep a copy of the said byelaws and of the certificate of registration displayed in the premises and if he fails to do so he shall be liable to a fine not exceeding twenty shillings and a daily fine not exceeding ten shillings.

(9) Where an offence under this section committed by a body corporate is proved to have been committed with the consent or connivance of or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(10) As respects byelaws made under this section the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister.

(11) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

PART VII

PUBLIC ORDER AND PUBLIC SAFETY

38.—(1) In this section “entertainment club” means a club, ^{Entertainment} organisation or body which, in furtherance of the objects or ^{clubs.} purposes for which the club, organisation or body was formed, is used by the members thereof for the purpose of entertainment, dancing or the playing of games in any premises.

(2) Subject to the provisions of subsection (14) of this section, on and after the appointed day—

- (a) any premises in the city used, whether occasionally or not, by an entertainment club shall be registered with the Corporation in accordance with the provisions of this section;
- (b) if the owner or occupier of any premises in the city uses the premises for the purposes of an entertainment club or permits the premises to be used for those purposes he shall unless the premises have been registered with the Corporation in accordance with the provisions of this section and the registration remains in force be liable to a fine not exceeding fifty pounds.

(3) The Corporation may by notice refuse to register or renew the registration of any premises for use by an entertainment club if in the opinion of the Corporation—

- (a) the premises are not safe for the purpose having regard to their character and condition and the size and nature of the club; or
- (b) the premises are not provided with satisfactory means of lighting, sanitation and ventilation; or
- (c) the premises are not provided with adequate precautions against fire and satisfactory means of escape in case of fire and equipped with suitable fire-fighting appliances.

(4) Registration under this section shall, unless revoked, remain in force for such period not exceeding thirteen months as may be fixed by the Corporation.

(5) An application for registration or renewal of registration under this section shall be made in writing to the Corporation by the owner or occupier of the premises to which the application relates and every such application shall state—

- (a) the address or situation of the premises to which the application relates; and

PART VII
—cont.

- (b) such other information regarding the premises to be registered and the manner in which the premises are proposed to be used as the Corporation may reasonably require.

(6) Any person making application for registration or renewal of registration under this section shall when making application pay to the Corporation in respect thereof such fee not exceeding one pound as the Corporation may prescribe.

(7) The Corporation may at any time by notice revoke the registration of any premises—

- (a) where any person is convicted under subsection (11) of this section of any offence in respect of such premises; or
(b) if the Corporation are of the opinion that the requirements of subsection (3) of this section are no longer satisfied.

(8) (a) The Corporation may on registering or renewing the registration of any premises for use as an entertainment club impose conditions as to—

- (i) the maintenance of public order and safety;
(ii) the maintenance in proper order of the precautions against fire, means of escape in case of fire, fire-fighting appliances and means of lighting the premises;
(iii) the maintenance in safe condition of means of heating the premises; and
(iv) the hours of opening and closing the premises for the entertainment club so as to ensure that nuisance is not likely to be caused to residents in the neighbourhood.

(b) Any person who contravenes a condition imposed under this subsection shall be liable to a fine not exceeding ten pounds.

(9) Before refusing to register or renew the registration of any premises or revoking the registration of any premises the Corporation shall give to the person applying for registration or renewal of registration or in whose name the premises are registered an opportunity of appearing before and of being heard by a committee of the council and, if so required by him, the Corporation shall within seven days of their decision give to him a statement of the grounds on which it was based.

(10) Any person aggrieved by the refusal of the Corporation to register or renew the registration of any premises or by the revocation of any such registration or by any condition imposed

on registration under this section may within twenty-one days from the date of the service of the notice of such refusal, revocation or condition appeal to a magistrates' court.

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—cont.

(11) If any premises are used by an entertainment club which is being conducted in a disorderly manner, or while being used by an entertainment club have been habitually used for an unlawful purpose or for indecent displays or as a resort of criminals or prostitutes, or if during the last preceding twelve months there have been at the premises while so being used illegal sales of intoxicating liquor, or if during that period any drug to which the Pharmacy and Poisons Act, 1933, or the Drugs (Prevention of Misuse) Act 1964 or the Dangerous Drugs Act 1965 applies has been unlawfully supplied by a person to any other person resorting to the premises while so being used—

(a) any person concerned in the organisation or management of the entertainment club; and

(b) any other person who, knowing or having reasonable cause to suspect that the premises were used in such manner or for any such purpose as aforesaid—

(i) allowed the premises to be so used; or

(ii) let the premises or otherwise made the premises available to any person by whom an offence in connection with such use has been committed;

shall be liable to a fine not exceeding fifty pounds.

(12) Any duly authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority, and any police officer shall have a right to enter, at all reasonable times, any premises used by an entertainment club for the purpose of ascertaining—

(a) whether there is, or has been, in or in connection with the premises, any contravention of the provisions of this section or of any condition imposed under the powers of this section;

(b) whether or not circumstances exist which would authorise the Corporation to take any action under this section.

(13) Where an offence under this section committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting

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to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and be liable to be proceeded against and punished accordingly.

(14) (a) Nothing in this section shall apply to—

- (i) any building of a description specified in subsection (5) of section 59 of the Act of 1936 during the time the building is used for the purpose or purposes therein described; or
- (ii) a private house or private flat; or
- (iii) any premises in respect of which there is in force for the time being a justices' on-licence within the meaning of subsection (2) of section 1 of the Licensing Act 1964; or
- (iv) any premises owned by or while used by members of an organisation which holds a certificate of exemption granted by the Minister under subsection (6) of section 269 of the Act of 1936 or any branch of such organisation.

1964 c. 26.

(b) Nothing in this section shall apply to—

- (i) a club registered or licensed under the Licensing Act 1964;
- (ii) a club, organisation or body registered as a charity under section 4 of the Charities Act, 1960;
- (iii) a club provided or maintained by the Corporation;
- (iv) a club, organisation or body for the benefit of which the Corporation have exercised any of the powers conferred upon them by section 4 of the Physical Training and Recreation Act, 1937;

1960 c. 58.

1937 c. 46.

- (v) a club, organisation or body in respect of the use of any premises exclusively and bona fide for the purpose of—
 - (A) games played on a playing field held with those premises;
 - (B) a gymnasium or swimming bath;
 - (C) playing badminton, fives, racquets, squash, ten-pin bowling, billiards, chess, dominoes, bridge, whist or any game similar to any of those games.

(c) Nothing in this section shall apply to any premises in respect of which a licence is for the time being in force for—

- (i) the public performance of stage plays; or
- (ii) public music or dancing or other entertainment of the like kind; or
- (iii) a cinematograph exhibition;

provided that the terms, conditions, restrictions and rules attaching to the licence or subject to which the licence has been granted are complied with during the time the premises are used for the purposes of an entertainment club, so far as they relate to precautions against fire, the means of escape in case of fire and the provision of suitable fire-fighting appliances.

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39.—(1) In this section—

Mobile coffee
stalls, etc.

“mobile stall” means any van, cart, motor car, trailer or other vehicle intended or adapted for use for the purpose of serving refreshments;

“refreshments” means any food or drink intended for immediate consumption but does not include ice cream, water ice or any similar commodity.

(2) (a) On and after the appointed day no person shall, without the consent of the Corporation, sell or offer for sale any refreshments from a mobile stall in any street in the city between the hours of ten o'clock in the evening and eight o'clock in the morning.

(b) The Corporation may refuse their consent under this subsection if they are satisfied that the sale or offer for sale of refreshments from a mobile stall between the hours of ten o'clock in the evening and eight o'clock in the morning, or the behaviour of persons resorting thereto during that period, is likely to cause annoyance to the occupiers of properties in the vicinity or members of the public; and in giving a consent the Corporation may impose such reasonable terms and conditions relating to the situation of, and the conduct of the business at, the mobile stall between the hours of ten o'clock in the evening and eight o'clock in the morning as they may think fit, but shall not impose any term or condition which requires the payment of money.

(3) The Corporation may at any time revoke, as from such date as the Corporation may specify (being a date not earlier than seven days from the date of service, upon the person to whom the consent was given, of notice of the revocation), any consent given under the last foregoing subsection if they are satisfied that the sale or offer for sale of refreshments from a mobile stall, between the hours of ten o'clock in the evening and eight o'clock in the morning, or the behaviour of persons resorting thereto during that period, has caused and is likely to continue to cause annoyance to the occupiers of adjacent properties or members of the public or if any term or condition imposed under the last foregoing subsection has not been complied with.

(4) Any person aggrieved by the refusal of the Corporation to give their consent under this section, or by any term or condition

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attached to such consent, or by the revocation of such consent, may within twenty-one days from the date of such refusal or revocation, or from the imposition of any term or condition, appeal to a magistrates' court.

(5) Any person who contravenes any of the foregoing provisions of this section shall be liable to a fine not exceeding twenty pounds.

Misleading
signs on motor
vehicles.

1962 c. 13.

40. If in the city any person exhibits or permits to be exhibited on any motor vehicle (not being a hackney carriage licensed to ply for hire or a public service vehicle as defined in the Act of 1960) any sign (not being a sign required to be exhibited by virtue of section 14 of the Vehicles (Excise) Act, 1962), or advertisement which might reasonably be taken to indicate that the vehicle is a hackney carriage licensed to ply for hire he shall be liable to a fine not exceeding five pounds.

Amendment
of section 67 of
Act of 1959.

41. Section 67 (Offences in respect of telephone boxes, fire hydrants, etc.) of the Act of 1959 shall have effect as if for the words " five pounds " there were substituted the words " twenty pounds ".

Fire
precautions
in registered
clubs.
1964 c. 26.

42.—(1) An officer of the Corporation authorised in writing by the Corporation may on giving not less than forty-eight hours' notice to the secretary of a club in the city registered under the Licensing Act 1964, on production of his authority, enter and inspect as regards any matter affecting fire risks the premises occupied by the club at any reasonable time on such day as may be specified in the notice; and a fire officer authorised in writing by the chief fire officer of the Corporation shall have the like right to enter and inspect the premises but the chief fire officer shall not so authorise a fire officer unless in his opinion special reasons exist making it necessary that the premises should be inspected for the proper discharge of his functions in relation to any matter affecting fire risks.

(2) Any person obstructing an officer of the Corporation in the exercise of the power conferred by this section shall be liable to a fine not exceeding twenty pounds.

Underground
car parks.

43.—(1) Where plans of any proposed work deposited with the Corporation in pursuance of building regulations include proposals for the construction, alteration or extension of an underground car park or the alteration of a building for use as an underground car park the Corporation may notwithstanding anything in section 64 of the Act of 1936 reject the plans unless

there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire being proposals relating to all or any of the following matters:—

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- (a) the construction of the underground car park and the approaches thereto and the materials to be used in such construction;
- (b) the provision of adequate means of ventilation to the underground car park;
- (c) the provision of electrical and mechanical and heating equipment in the underground car park;
- (d) the provision of fire-fighting equipment and appliances in connection with the underground car park;
- (e) the provision of safe and adequate means of ingress to and egress from the underground car park;
- (f) the provision of adequate means of access to the underground car park for fire brigade appliances and personnel.

(2) Subsection (2) of section 64 and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the Corporation and a person who has executed or proposes to execute any work—

- (a) whether the work is such as is mentioned in subsection (1) of this section; or
- (b) whether the Corporation ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

that question may on the application of that person be referred to the Secretary of State for determination and the Secretary of State shall determine any question submitted to him under paragraph (a) of this subsection or (as the case may be) may direct the Corporation to treat as satisfactory the said proposal or the said proposal as modified by him.

(4) If after plans of any underground car park have been passed by the Corporation in consequence of any proposals made under subsection (1) of this section it appears to the Corporation that any such proposal has not been carried into effect or is not being observed the Corporation may by notice to the owner or occupier of the underground car park prohibit its use as an underground car park until the proposal has been carried into effect or is being observed.

(5) If any person on whom a notice has been served under subsection (4) of this section uses the underground car park

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or permits it to be used as an underground car park without giving effect to or securing the observance of any proposal specified in the notice he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

Further
provision as
to under-
ground car
parks.

44.—(1) Without prejudice to the provisions of section 43 (Underground car parks) of this Act the Corporation may by notice to the owner or occupier of any underground car park in the city which is first brought into use after the passing of this Act require compliance with such conditions as to the use of the underground car park as may be specified in the notice for the purpose of preventing or reducing danger from fire therein and in the case of any underground car park as aforesaid in respect of which plans are not deposited with the Corporation in pursuance of building regulations the Corporation may by notice to the owner or occupier thereof require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (b) to (f) of subsection (1) of the said section 43 as the Corporation think fit.

(2) If any person on whom a notice under this section has been served fails to comply with any requirements specified in the notice he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(3) A person on whom a notice under this section has been served may within twenty-one days of the service of the notice appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person the Corporation shall deliver to him a certificate signed by the town clerk stating the grounds on which the Corporation have made any requirement under this section and where such person appeals to the Secretary of State against such requirement the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given or as soon as possible after the receipt by such person of the certificate.

(5) On consideration of any such appeal the Secretary of State may if he thinks fit confirm, modify, alter or annul any requirement made by the Corporation under this section.

Interpretation
and powers of
entry for
purposes of
last two
foregoing
sections.
1928 c. 32.

45.—(1) In the last two foregoing sections the expression “underground car park” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by the Corporation or the Secretary of State under section 2 or section 3 of the Petroleum (Consolidation) Act, 1928, is in force or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space

(either alone or in addition to any other facility or service) for motor cars or other vehicles and of which any part of the floor is situated more than 4 feet below the surface of the ground adjoining or nearest to such building or part of a building.

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—cont.

(2) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of the last two foregoing sections shall be provisions which it is the duty of the Corporation to enforce.

46.—(1) The Corporation may in relation to any substance likely to involve special hazard to persons engaged in normal duties of fire fighting—

Prescription of signs, etc. to be used on certain buildings.

- (a) prescribe standard uniform signs or symbols or warning notices in a form approved by the Secretary of State clearly indicating the nature of the substance and the existence of danger to persons so engaged;
- (b) by notice require the occupier of any part of a building used for the manufacture or storage of the substance to affix within such reasonable time as is specified in the notice and thereafter keep fixed in a conspicuous position or positions in or on the part of the building used for such manufacture or storage the appropriate sign, symbol or notice.

(2) Any person who fails to comply with the requirements of the Corporation under this section shall be liable to a fine not exceeding ten pounds and to a daily fine not exceeding five pounds.

47.—(1) If it appears to the Corporation that for the purpose of preventing fire in any such building in the city as is referred to in subsection (5) of section 59 of the Act of 1936 or for the purpose of preventing injury or danger to persons resorting thereto—

Preventing fire in public or other buildings.

- (a) the apparatus or fittings for lighting or heating the building require alteration; or
- (b) the arrangement of the chairs and seating requires alteration; or
- (c) any floor requires strengthening in order to prevent overloading; or
- (d) any of the materials from which any fireplaces, flues, chimney vents or other like parts of such building are constructed are unsuitable;

the Corporation may by notice require the owner or occupier of the building to make such provision in regard to the matters aforesaid as may be necessary:

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—cont.

Provided that—

- 1961 c. 64. (i) for the purposes of this subsection any fireplace, flue, chimney vent or other like part of such building which complies with building regulations for the time being in force made under section 4 of the Public Health Act, 1961, shall not be deemed to have been constructed of unsuitable materials;
- 1843 c. 68. (ii) this subsection shall not apply to premises in respect of which a licence under the Theatres Act, 1843, or the Cinematograph Acts, 1909 and 1952, is for the time being in force;
- 1961 c. 34. (iii) nothing in this section shall affect the operation of the Factories Act, 1961, or the Offices, Shops and Railway Premises Act, 1963, or any regulation or order made thereunder.
- 1963 c. 41.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Parts of
buildings used
for storage
of
flammable
substances.

48.—(1) The occupier of any part of a building to which this section applies which after the appointed day is used or intended to be used for the storage for the purposes of sale or trade of any substances to which this section applies (in this section referred to as “the storage part of the building”) shall give notice to the Corporation of such use or intention to use, as the case may be, and such notice shall be given—

- (a) in the case of any part of a building which is so used immediately before the appointed day, within twenty-one days after the appointed day; and
- (b) in the case of any part of a building which after the appointed day is intended to be so used, not less than twenty-one days before such user takes place.

(2) The Corporation may, if they are of the opinion that such storage—

- (a) is in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or

(b) is in such manner as to be liable to cause fire or explosion;

by counter-notice require the occupier of any part of a building in respect of which a notice has been served under subsection (1) of this section to provide within such reasonable period as may be specified in the counter-notice—

- (i) adequate means for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;

- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;
- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) (a) An authorised officer of the Corporation may, in respect of any premises which he has entered in pursuance of the powers conferred by section 287 of the Act of 1936 as applied by this Act, purchase and test samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any kind of test of a sample taken by an authorised officer of the council by virtue of this section shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (6) of this section, unless the following requirements have been complied with: that is to say, the said officer shall, forthwith after taking the sample, notify the occupier of the building of his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

(4) The occupier of any building who—

(a) by reason of a restriction affecting his interest in the building is unable to execute works for the purpose of complying with a requirement of the Corporation under this section; or

(b) considers that the owner of the building or any other person having an interest therein should contribute towards the cost of the execution of works as aforesaid and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with such requirement or, as the case may be, to direct the owner of the building or any other person who appears to the court to have an interest therein to contribute towards the cost of such works as aforesaid such an amount as appears to the court in

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—cont.

all the circumstances of the case to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

(5) (a) If after the requirements of the Corporation under subsection (2) of this section have been complied with and a certificate to that effect has been granted by the Corporation any material extension or material structural alteration of the building to which the certificate relates is made the Corporation may serve a further counter-notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the Corporation shall amend the certificate or grant a new certificate in respect of the building but if anything required to be provided in accordance with a further counter-notice served under this subsection is not provided within such reasonable time as may be specified in the further counter-notice the Corporation may cancel the certificate granted under this subsection in respect of the building.

(6) (a) Any person aggrieved by a requirement of the Corporation under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the counter-notice is not reasonably sufficient for the purpose of complying with the requirements of the counter-notice.

(b) Any person aggrieved by the refusal of the Corporation to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

(7) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(8) This section applies to—

- (a) any building in the city which is used, or intended to be used, partly for the storage for the purposes of sale or trade of any substance to which this section applies and partly as a habitable room or a place in which any person works, if the part used as a habitable room or

a place in which a person works communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;

- (b) (i) any substance which is gaseous at a temperature of thirty-three degrees Fahrenheit at atmospheric pressure and which is flammable; and
- (ii) any other substance which when tested by a method approved by the Secretary of State gives off a flammable vapour at a temperature of less than one hundred and fifty degrees Fahrenheit:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act, 1928, apply; or 1928 c. 32.
- (ii) any substance which does not when tested by a method approved by the Secretary of State give off a flammable vapour at a temperature of less than eighty degrees Fahrenheit and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or
- (iii) any substance which does not when tested by a method approved by the Secretary of State give off a flammable vapour at a temperature of less than eighty degrees Fahrenheit and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(9) In this section “building” where used in relation to the storage of substances therein includes the land forming part of the same enclosure as the building.

(10) Nothing in this section shall apply to premises which are subject to the Factories Act, 1961, or the Offices, Shops and Railway Premises Act, 1963, or regulations made under those Acts. 1961 c. 34. 1963 c. 41.

(11) Nothing in this section shall apply to any building or part of a building by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster or other apparatus for or in connection with the supply of gas.

PART VIII

FINANCE AND SUPERANNUATION

Power to
borrow.

49.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

1946 c. 58.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Establishment
expenses.

50. Without prejudice to section 292 of the Act of 1936, and to that section as applied by any other enactment, where under any enactment the Corporation are empowered to execute works at the request of, or in default of, the owner or occupier of any premises, and to recover from him the expenses incurred by them in so doing, they may include in, and recover as part of, the expenses, such additional sum, not exceeding 5 per cent. of the cost of the works, as they think fit in respect of their establishment charges.

Recovery of
sums paid
to officers,
etc.

51.—(1) Where the Corporation have paid in advance to any employee the amount of his emoluments and such employee dies before the expiration of the period in respect of which such payment is made the Corporation shall not be required to demand the return of such portion thereof not exceeding twenty-five pounds as the Corporation may determine.

(2) In this section—

“employee” means any officer or servant of the Corporation, or any officer or servant whose salary or wages is or are payable by the Corporation; and

“emoluments” means in relation to an officer or servant his salary or wages (as the case may be).

52.—(1) If a person for the purpose of obtaining for himself or another person— PART VIII
—cont.

- (a) the tenancy or occupation of a house belonging to, or at the disposal of, the Corporation; or
- (b) a grant, loan, allowance or other payment by or on behalf of the Corporation; or
- (c) a reduction of a rent, rate, charge or other payment due or to become due to the Corporation;

False statements to obtain rent rebates, etc.

knowingly or recklessly makes, or permits to be made, to the Corporation or any committee of the council or member of the council or employee of the Corporation a statement which is false in a material particular about his, or that other person's, needs or means, he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both.

(2) Where the making of a false statement for any of the purposes aforesaid is an offence under any enactment other than the Perjury Act, 1911, it shall not be an offence under this section. 1911 c. 6.

(3) The court by which a person is convicted of an offence under this section may by the conviction adjudge him—

- (a) to repay to the Corporation a sum not exceeding the amount of the grant, allowance or other payment not being a loan obtained by means of the false statement;
- (b) to pay to the Corporation a sum not exceeding the difference between any reduced payment accepted by the Corporation in faith of the false statement and the payment which the Corporation would otherwise have accepted.

(4) Section 97 (False statements to obtain benefits) of the Act of 1959 is hereby repealed.

53.—(1) The Corporation may establish a fund to be called Insurance “the insurance fund” with a view to providing a sum of money fund. which shall be available for making good such losses, damages, costs and expenses as may from time to time arise in respect of such risks as may from time to time be specified in a resolution of the council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

PART VIII
—cont.

(3) When the insurance fund shall amount to the prescribed amount as hereinafter defined the Corporation shall discontinue the appropriations to the fund under subsection (4) of this section but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue such appropriations until the fund be restored to the prescribed amount and if at any time the Corporation reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed, such moneys shall be transferred to the general rate fund, and, if any sums shall have been appropriated from the housing revenue account under the next succeeding subsection, to the housing revenue account, in such proportions as the Corporation consider equitable and any moneys so transferred to the general rate fund shall be apportioned between the several accounts of that fund in such proportions as the Corporation consider equitable.

(4) The Corporation may from time to time appropriate to the insurance fund such sums as they think fit from the appropriate account in the general rate fund and if they think fit from the housing revenue account and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance:

Provided that any payments by contribution from the housing revenue account shall not exceed the proportion of the total yearly payments which in the opinion of the Corporation properly relates to the specified risks arising from the purposes for which that account is kept.

(5) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks or any of them, all moneys for the time being standing to the credit of the insurance fund shall unless applied in any other manner authorised by any enactment be invested in any securities in which trustees are from time to time authorised to invest trust funds and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to and form part of the general rate fund.

(b) The Corporation shall in every financial year carry to the credit of the insurance fund out of the revenue moneys of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the preceding paragraph of this subsection.

(6) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Corporation in respect

of the specified risks which are payable out of the insurance fund in the order of the dates on which such losses, damages, costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of the preceding paragraph of this subsection, and the amounts of any such deficiencies as aforesaid not made up by borrowing, shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings, departments or services of the Corporation, and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(7) If and when the Corporation establish an insurance fund under this section, any moneys standing to the credit of any insurance fund provided by the Corporation and in existence at the date of the passing of this Act shall be carried to and form part of the insurance fund provided under this section.

(8) Any covenant or obligation binding on the Corporation to insure against any risk shall (except in so far as the terms of such covenant or obligation otherwise specifically provide) be deemed to be satisfied by a resolution of the council under subsection (1) of this section and that risk shall be one of the specified risks.

(9) In this section—

“ financial year ” means the period of twelve months commencing on 1st April in any year and ending on 31st March in the next following year;

“ insurance office ” means—

- (i) an insurance company; or
- (ii) an underwriter being a member of an association of underwriters;

“ the prescribed amount ” means such sum as may from time to time be prescribed by the council.

54. Section 72 (Investment of superannuation fund) of the Act of 1959 shall have effect as if—

(a) the words “ the bonds debentures debenture stock mortgages obligations or securities or ” in paragraph (e) were omitted; and

(b) the following paragraph were inserted after paragraph (g):—

“ (h) in or upon the bonds debentures debenture stock mortgages obligations or securities of any company

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—cont.

incorporated under any general Act of the United Kingdom Parliament being stocks or shares which are at the time of making the investment quoted on the London Stock Exchange ”.

Certain remuneration and service excluded for superannuation purposes.

55.—(1) The salary, wages, fees and other payments paid or made to an employee of the Corporation or of any other local authority in respect of any part-time employment by the Corporation (additional to his ordinary whole-time employment)—

- (a) as an instructor or other employee performing duties at or for the purposes of an evening institute or for evening classes; or
- (b) as a warden or other employee performing duties at a youth centre; or
- (c) as a civil defence instructor; or
- (d) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment where that employment is by the Corporation;

shall not be remuneration within the meaning of the Local Government Superannuation Acts, 1937 to 1953, or of any other enactment affecting the superannuation fund maintained by the Corporation under those Acts and the service of any such employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

(2) Where before the passing of this Act any person has paid any contribution or contributions to the superannuation fund maintained by the Corporation which would not have been so paid if this section had been in force when such contribution or contributions was or were paid, the Corporation shall repay to such person a sum equal to the amount of such contribution or contributions together with compound interest thereon calculated to the date of repayment at the rate of three pounds per cent. per annum with half-yearly rests.

(3) If a person to whom subsection (2) of this section applies continues after the passing of this Act to hold the part-time employment in respect of which the contribution or contributions were paid, and gives to the Corporation within two months after the passing of this Act written notice of his wish to continue paying contributions in respect of the salary, wages, fees and other payments paid or made to him in respect of that part-time employment, the foregoing provisions of this section shall not have effect in relation to that employment.

PART IX

RESTRICTION OR DISCONTINUANCE OF FERRY

56. In this Part of this Act unless the subject or context otherwise requires—

Interpretation
of this Part
of Act.

“ the ferry ” means the ferry from Eastney to Hayling Island owned and operated by the Corporation;

“ the ferry works ” means—

(a) all quays, steps, landing and slipping places, floating landing stages and other works and conveniences; and

(b) all roads, bridges, approaches, sewers, drains and mooring posts and the toll office, staff rooms, sheds, waiting rooms and other rooms, buildings, works and conveniences;

held, constructed or provided by the Corporation in connection with or for the purpose of the ferry;

“ the ferry works and lands ” means the ferry works and all lands, rights and privileges held or enjoyed by the Corporation in connection with or for the purpose of the ferry;

“ tidal work ” means so much of any of the ferry works as is on, under or over tidal waters or tidal lands below the level of mean high-water springs;

“ Trinity House ” means the corporation of Trinity House of Deptford Strond.

57.—(1) Notwithstanding anything in any enactment or any agreement or any rule of law or otherwise to the contrary, the council may at any time with the consent of the Minister of Transport pursuant to subsection (2) or subsection (3) of this section by resolution restrict the operation of the ferry service provided by them in connection with the ferry, or discontinue such ferry service, as the case may be.

Restriction or
discontinuance
of ferry.

(2) The Minister of Transport may, if the said Minister is satisfied that, having regard to the expenditure incurred by the Corporation in the working, management and maintenance of the ferry and the revenue obtained therefrom and taking into account the extent of the social need for the ferry service, it is reasonable to restrict the ferry service, give his consent under subsection (1) of this section to the restriction of the operation of the ferry service between the 1st November and the 31st March to such times as may be determined by the council and approved by the said Minister.

(3) The Minister of Transport may give his consent under subsection (1) of this section to the discontinuance of the ferry service when the said Minister is satisfied that suitable alternative means of communication are available to the public in place of the ferry.

PART IX
—cont.

(4) If in pursuance of the provisions of subsection (1) of this section the Corporation discontinue the ferry service provided by them as aforesaid they may abandon the ferry and as from such date as the council by resolution fix for the abandonment thereof the ferry shall be discontinued and abandoned and all rights and obligations (if any) in or relating to the franchise of the ferry shall be extinguished.

(5) (a) Any officer or servant of the Corporation employed in connection with the ferry immediately before the restriction or discontinuance of the ferry service who suffers loss of employment or loss or diminution of emoluments which is attributable to such restriction or discontinuance shall be entitled to have his case considered for the payment of compensation by the Corporation and the provisions of the Local Government (Compensation) Regulations 1963, as to the determination and payment of compensation, shall, with any necessary adaptations, apply accordingly; the material date for the purposes of regulations 3 and 5 (1) of the said regulations shall be the date of the resolution under subsection (1) of this section and for the purposes of any of the said regulations (other than regulations 3 and 5 (1)) the date of the restriction or discontinuance of the ferry service.

(b) Where an officer or servant of the Corporation employed in connection with the ferry has, by reason of any such restriction or discontinuance, taken up alternative employment with the Corporation, and that alternative employment is within three years after its commencement terminated by the Corporation on the ground that his services are redundant, such officer or servant shall (without prejudice to his rights under the said regulations) be deemed for the purposes of paragraph (a) of this subsection to have suffered loss of employment attributable to such restriction or discontinuance.

Retention and
disposal of
ferry works
and lands.

58.—(1) Notwithstanding anything in section 57 (Restriction or discontinuance of ferry) of this Act the Corporation may as from the date on which the ferry is discontinued and abandoned—

- (a) retain, hold, maintain, adapt and use the ferry works and lands or any part thereof for such time and for such purposes as they think fit;
- (b) sell, lease, exchange or otherwise dispose of the ferry works and lands or any part thereof or any interest therein in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a capital sum or of an annual rent or of payment in any other form) and may on any such exchange pay or receive money for equality of exchange;
- (c) appropriate the ferry works and lands or any part thereof for any other purpose.

PART IX
—cont.

(2) Nothing in this section shall authorise the disposal of the ferry works and lands by the Corporation whether by sale, lease, exchange or other disposition in breach of any trust, covenant or agreement binding upon the Corporation.

(3) Section 166 of the Act of 1933 shall apply to capital money received by the Corporation in respect of the sale, leasing, exchange or other disposal of land under this section as it applies to capital money received in respect of a transaction under section 164 or 165 of that Act.

59.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof the Corporation shall forthwith notify Trinity House and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as Trinity House shall from time to time direct. Provision against danger to navigation.

(2) If the Corporation fail to notify Trinity House as required by this section or to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

60.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Board of Trade may by notice in writing require the Corporation at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the board think proper. Abatement of works abandoned or decayed.

(2) Where any of the ferry works consisting partly of a tidal work and partly of works on or over land above the level of mean high-water springs is abandoned or suffered to fall into decay and that part of the works on or over land above the level of mean high-water springs is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Board of Trade may include that part of the works, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Corporation, they have failed to comply with the requirements of the notice the Board of Trade may execute the works specified in the notice and any expenditure incurred by them in so doing shall be recoverable from the Corporation as a simple contract debt.

PART X

MISCELLANEOUS

61.—(1) The Corporation may within or outside the city provide a golf course and for that purpose may provide such buildings and execute such works as may be necessary or expedient. Golf courses.

PART X
—cont.

(2) References in the following provisions of this section to a golf course provided under this section shall include references to any buildings provided or works executed under this section and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

(a) themselves manage a golf course provided under this section making such reasonable charges for the use thereof or admission thereto as they think fit; or

(b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) The Corporation may—

(a) at a golf course provided under this section provide and sell refreshments of all kinds subject to the provisions of all enactments relating thereto;

(b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;

(c) grant upon such terms and conditions and for such period as they think fit the right so to provide and sell refreshments;

(d) by themselves or any person appointed by them in that behalf apply for and hold licences for the sale of intoxicating liquor or tobacco at any such golf course.

(5) The Corporation may make byelaws for regulating the use of golf courses provided under this section whether within or outside the city and the conduct of persons using them or resorting thereto:

Provided that a copy of any such byelaws for regulating the use of any golf course provided under this section wholly or partly in the urban district of Havant and Waterloo shall be sent to the council of that district as soon as may be and in any case not later than the date on which they are submitted to the Secretary of State for confirmation.

(6) As respects byelaws made under this section the confirming authority shall be the Secretary of State.

Unification of
law affecting
Corporation's
cemeteries.

62.—(1) Any cemetery vested in the Corporation shall be deemed to have been provided by the Corporation under the Public Health Acts, and the provisions of those Acts shall apply to such a cemetery.

(2) The provisions of the Burial Acts, 1852 to 1906, relating to the provision of burial grounds, shall cease to be in force with respect to any cemetery in the city.

(3) Nothing in this section shall affect any right of burial or of constructing a place of burial which any person may have acquired

prior to the passing of this Act or prejudicially affect the amount of any fee, payment or sum in respect of interment in, or the right of erecting or placing any monument, gravestone, tablet or monumental inscription on, any grave or place of burial in respect of which any such right has been so acquired.

(4) In, and for the purposes of this section, the expression "Public Health Acts" means the Public Health (Interments) Act, 1879, and the Act of 1936.

1879 c. 31.

63. Notwithstanding anything in section 42 of the Cemeteries Grant of exclusive rights of burial under hand. Clauses Act, 1847, and the schedule to that Act, or in any other enactment, a form of grant of the exclusive right of burial in any part of a burial ground or cemetery maintainable by the Corporation may be given under the hand of the town clerk or his duly authorised deputy in lieu of under the common seal of the Corporation:

1847 c. 65.

Provided that for the purposes of this section a grant of exclusive right of burial shall be deemed to be given under the hand of the town clerk or his duly authorised deputy if a facsimile of his signature by whatever process reproduced is affixed to such a grant.

64.—(1) (a) The Corporation may purchase by agreement, take on lease or appropriate, and may retain, hold and use for such time as they may think fit lands and buildings within the city for use as a terminal or terminals for hover vehicles, hydrofoil vessels and similar vehicles or vessels, and may erect or adapt on any lands so purchased, taken on lease or appropriated, and may maintain and manage buildings, structures, slipways and other works for use in connection with such vehicles or vessels and may make reasonable charges in respect of the use of such works.

Power to provide facilities for hover vehicles, hydrofoil vessels, etc.

(b) The Corporation may at any such terminal provide such plant, facilities, appliances and conveniences as may be requisite or expedient for the operation, equipment, maintenance, repair and use of such vehicles or vessels.

(2) Without prejudice to the generality of the provisions of subsection (1) of this section, the Corporation may exercise the following powers at any terminal provided by them in accordance with the provisions of subsection (1) of this section—

(a) they may provide and maintain parking places, cloak-rooms, waiting rooms, refreshment rooms, shelters, offices, information bureaux and displays, lavatories, conveniences and other similar accommodation;

(b) they may make reasonable charges for the use of, or let on hire to any person, any accommodation so provided, or any building or structure;

PART X
—cont.

(c) they may make regulations as to the use of such parking places and accommodation.

(3) In this section—

“hover vehicle” means a vehicle, however propelled, designed to be supported on a cushion of air;

“hydrofoil vessel” means a vessel, however propelled, designed to be supported on foils.

Boundary
walls.

65.—(1) Without prejudice to the provisions of any other enactment, where any building or structure or part of a building or structure is demolished by the Corporation leaving exposed a wall of adjoining premises, the Corporation may—

(a) with the consent of the owner of those adjoining premises, carry out at their own expense any works which they consider to be reasonably necessary or desirable for either or both of the following purposes, that is to say, for—

(i) weatherproofing the surface of the wall;

(ii) restoring or improving the appearance of the wall; or

(b) make such contribution, if any, as they think fit towards any expenses incurred by the owner or occupier of those adjoining premises in carrying out works for either or both of the purposes referred to in the foregoing paragraph:

Provided that where in the opinion of the Corporation any consent required for the carrying out of works proposed by them for the purposes mentioned in sub-paragraph (ii) of paragraph (a) of this subsection is unreasonably withheld, and the appearance of the wall in question is, or unless such works are carried out will be, detrimental to the general appearance of the area in which the adjoining premises are situate, they may apply to the magistrates' court, by way of complaint, for an order, and the court may either order the carrying out of the proposed works subject to such conditions, if any, as the court thinks fit, or disallow the carrying out of those works.

(2) An officer or servant of the Corporation, or of their contractor, acting in pursuance of an order of the magistrates' court or of the court of quarter sessions made in pursuance of the foregoing provisions of this section, and after the giving of not less than twenty-four hours' notice to the occupier of the land on which the exposed wall is situated may, at all reasonable times, and on producing, if so required, some duly authenticated document showing his authority, enter on such land for the purpose of carrying out in compliance with the said order the works referred to therein.

(3) Nothing in this section, nor the carrying out of any works thereunder, shall impose upon the owner of any such adjoining premises as are referred to in subsection (1) of this section any liability which would not have been imposed upon him if this section had not been enacted and the said works had not been carried out, other than the liability to comply with the terms of any order made by a court under this section.

66.—(1) Subject to the provisions of subsection (2) of this section, the Corporation may—

Protection of
seashore and
adjoining land
from
pollution.

- (a) cleanse the seashore within the city and the adjoining land (including land below the level of mean low-water springs) by removing therefrom oil or any mixture containing oil or any other polluting, offensive or injurious substance which may have been deposited thereon by the action of any tidal or other waters; and
- (b) for the purpose of preventing the pollution of the seashore within the city and such adjoining land as aforesaid by any such substance as aforesaid, spray or cause to be sprayed with chemicals or other substances any tidal or other waters, and may do any other thing or take any other measure which in their opinion is likely to achieve that purpose.

(2) Any chemical substances sprayed or caused to be sprayed in the exercise of the powers of subsection (1) of this section shall be such substances as shall have been approved by the Minister of Agriculture, Fisheries and Food and such substances shall be employed subject to such limitation and in accordance with such conditions as may from time to time be prescribed by such Minister in connection with such approval.

(3) Nothing in this section or done thereunder shall prejudice or affect the operation of the Sea Fisheries Regulation Act 1966, 1966 c. 38. the Salmon and Freshwater Fisheries Acts, 1923 to 1965, the Water Act, 1945, the Rivers (Prevention of Pollution) Acts, 1951 1945 c. 42. to 1961, or the Oil in Navigable Waters Act, 1955, or any byelaws 1955 c. 25. from time to time in force made under any of those Acts, or permit the doing of any act which would have been unlawful by virtue of the provisions of the said Acts or of any such byelaw if this section had not been enacted.

(4) In this section—

“oil” has the same meaning as in the Oil in Navigable Waters Act, 1955;

“seashore” includes any bank, barrier, dune, beach, flat or other land adjacent to the foreshore.

PART X
—cont.

Removal of
life-saving
equipment of
Corporation.

67.—(1) No person (except in the execution of some act which he has lawful authority to perform) shall remove or otherwise interfere with any life-saving equipment vested in the Corporation within the city.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding ten pounds.

Provision of
boating
facilities.
1937 c. 46.

68. The powers of the Corporation under section 4 of the Physical Training and Recreation Act, 1937, shall include the power to provide and maintain or arrange for the provision of boating facilities, and for that purpose the Corporation may, within the city, provide and maintain such yacht basins, buildings, slipways, jetties, moorings, starting boxes and other works as may be necessary or expedient for the purpose thereof or in connection therewith.

Saving for
provisions of
Coast
Protection
Act, 1949.
1949 c. 74.

69. Nothing in section 64 (Power to provide facilities for hover vehicles, hydrofoil vessels, etc.) or section 68 (Provision of boating facilities) of this Act shall affect the application to any operations of sections 34 to 36 of the Coast Protection Act, 1949 (which require the consent of the Board of Trade to certain operations and contain other provisions for the safety of navigation).

Research into
matters
concerning
social
conditions, etc.

70. The Corporation may in connection with the exercise of any of their functions contribute, by grants or otherwise, towards the cost of investigations and research undertaken by other bodies or persons into matters affecting the city relating to—

(a) social or economic conditions; or

(b) health or hygiene.

Boarding out
of aged and
handicapped
persons.
1948 c. 29.

71. In pursuance of their duty under paragraph (a) of subsection (1) of section 21 of the National Assistance Act, 1948, to provide residential accommodation for persons who, by reason of age, infirmity or any other circumstances, are in need of care and attention which is not otherwise available to them, the Corporation may make arrangements for boarding out such persons, and for the purposes of the said Act of 1948 and of paragraph (15) of Part II of Schedule 2 to the Ministry of Social Security Act, 1966, accommodation in which any such person is for the time being boarded out under this section shall be deemed to be accommodation provided under subsection (1) of section 26 of the said Act of 1948 as if it was accommodation provided in premises managed by a voluntary organisation within the meaning of that section and as if any person with whom the Corporation makes such arrangements was such a voluntary organisation.

1966 c. 20.

72.—(1) The Corporation may enter into a contract with any person whereby, in consideration of payments made by way of premium or otherwise by the Corporation, that person undertakes to pay to the Corporation such sums as may be provided in the contract in the event of any voluntary health service assistant or voluntary welfare service assistant meeting with a personal accident, whether fatal or not, while he is engaged as such, or suffering any disease or sickness, whether fatal or not, as a result of being so engaged.

PART X
—cont.

Insurance of
certain
voluntary
workers.

(2) Any sum received by the Corporation under any such contract shall, after deduction of any expenses incurred in the recovery thereof, be paid by the Corporation to, or to the personal representatives of, the voluntary health service assistant or voluntary welfare service assistant who suffered the accident, disease or sickness in respect of which the sum is received.

(3) The provisions of the Life Assurance Act, 1774, shall not apply to any such contract, but any such contract shall be deemed for the purposes of the Insurance Companies Act, 1958, to be a policy of insurance upon the happening of personal accidents, disease or sickness.

1774 c. 48.

1958 c. 72.

(4) In this section “voluntary health service assistant” and “voluntary welfare service assistant” mean a person who, at the request of the Corporation, or a duly authorised officer of the Corporation, performs any service or does anything, otherwise than for profit or reward, for the purposes of, or in connection with, the carrying out of any of the functions of the Corporation under the National Health Service Act, 1946, the National Assistance Act, 1948, the Disabled Persons (Employment) Act, 1958, and the Mental Health Act, 1959, and any other enactment relating to the health or welfare services of the Corporation (as the case may be) and includes any officer of a voluntary organisation which provides in the city services or facilities of the kind provided by the Corporation in pursuance of these functions.

1946 c. 81.

1948 c. 29.

1958 c. 33.

1959 c. 72.

(5) In this section “voluntary organisation” means any organisation not carried on for profit, not being an organisation carried on by a public or local authority, and “voluntary” shall be construed accordingly.

73. The Corporation may, as respects any premises in the city, provide and maintain such number of dustbins for the reception of trade refuse as they may consider necessary.

Power to
provide
dustbins
for trade
refuse.

74. The rent for the time being recoverable by the Corporation under a tenancy of any premises forming part of any housing accommodation belonging to the Corporation may be increased

Notice of
variation of
rent, etc.

PART X
—cont.

or reduced or the terms and conditions of that tenancy may be varied, amended or added to by the service by the Corporation on the tenant of a notice—

- (a) specifying the amount of the increase or reduction in rent or the variation or amendment of or addition to the terms and conditions; or
- (b) in the case of an increase or reduction in rent, showing in general terms how the increase or reduction in rent has been determined and indicating that the revised rent has been or will be included in the rent book provided by the Corporation;

whether or not such notice is accompanied by a notice to quit, but such increase, reduction, variation, amendment or addition shall not take effect until such date as is specified in the notice not being earlier than four weeks after the service thereof:

Provided that if before the date specified in the notice the tenant upon whom such notice has been served serves a counter-notice upon the Corporation requiring them to treat the notice as a notice to quit, the notice shall be deemed to be a notice to quit the premises on the said date or, in the case of an increase or reduction in rent notified by means of a general notice as aforesaid and an entry in the rent book, such later date (not being more than four weeks from the date on which the revised rent is so entered) as the tenant may indicate in the counter-notice.

Power to
require
information as
to ownership
of premises.

75.—(1) The Corporation may for the purpose of enabling them to perform any of their functions under—

- (a) this Act;
- (b) any enactment in force at the passing of this Act which authorises the Corporation to acquire land compulsorily;
- (c) any enactment mentioned in Schedule 1 to this Act; and
- (d) any local enactment in force at the passing of this Act which authorises the Corporation to serve notice upon the owner or occupier of lands or premises requiring the execution by such owner or occupier of works on such lands or premises or which authorises the Corporation to execute works on lands or premises within the city;

require—

- (i) the occupier and any person having an interest in any premises in the city, and any person who either directly or indirectly receives rent in respect of such premises to state in writing the nature of his own interest therein and the name and address of any other person known to him as having an interest in those premises whether as

freeholder, mortgagee, lessee or otherwise or the name and address of any person known to him to receive either directly or indirectly the rent in respect of those premises; and

- (ii) any person who has sold or otherwise disposed of, leased or let any premises in the city to state in writing the name and address of the person to whom he has sold or otherwise disposed of, leased or let those premises.

(2) Any person who having been required by the Corporation in pursuance of this section to give to them any information fails to give that information, or knowingly makes any misstatement in respect thereof, shall be liable to a fine not exceeding five pounds.

(3) For the purposes of this section the expression “interest” includes any legal estate or interest in the premises or in any rent charge issuing out of those premises.

(4) The provisions of any of the enactments referred to in paragraph (b) of subsection (1) of this section which contain power to require information as to the ownership of premises shall cease to apply to the Corporation in so far as they relate to the same subject-matter as this section.

76.—(1) In the case of default in the payment of any fees or charges payable to the Corporation by the operator of an aircraft using an airport or aerodrome forming part of the aerodrome undertaking of the Corporation as from time to time existing, the Corporation or any person duly authorised by the Corporation in that behalf may take such steps as are necessary to detain, pending payment, the aircraft in respect of which the fees or charges were incurred or any other aircraft of which the person in default is the operator at the time when the detention begins.

Lien over
aircraft.

(2) If payment of any such fees and charges is not made to the Corporation within twenty-eight days after a notice demanding payment thereof has been sent by post addressed to the registered owner of the aircraft at any place at which he carries on business, the Corporation shall be at liberty from time to time and in such manner as they shall think fit to sell, remove or destroy or otherwise dispose of the aircraft and any of its parts and accessories in order to satisfy any such lien.

(3) When for the purposes of this section an aircraft is detained on such airport or aerodrome or an aircraft or any of its parts and accessories are sold, removed, destroyed or otherwise disposed of, the Corporation shall not be liable for loss of or any damage to the aircraft, its parts or accessories or any property contained in the aircraft, howsoever such loss or damage may arise, occurring while for those purposes the aircraft is on such

PART X
—cont.

airport or aerodrome or is in the course of landing or taking-off at any such airport or aerodrome or of being removed or dealt with elsewhere.

(4) For the purposes of this section “operator” in relation to an aircraft means the person for the time being having the management of that aircraft.

Illuminations.

77.—(1) The Corporation may in, on or over any of the buildings, structures, streets, gardens, parks and places in the city belonging to the Corporation or (with the consent of the owner or occupier) any other buildings, structures, streets, gardens, parks and places in the city provide or arrange on such terms and conditions as they may think fit for the provision of illuminations and may for such purposes provide, fit up, maintain and operate all such brackets, lamps, fittings, equipment, apparatus and appurtenances and do all such things as may be necessary or requisite in connection therewith:

Provided that the Corporation shall not continue any illumination under this section which hinders or is likely to hinder the interpretation of any railway signal or is likely to render more hazardous the use of any railway.

1961 c. 64.

(2) The provisions of section 45 of the Public Health Act, 1961, shall in its application to the city extend and apply to such brackets, lamps, fittings, equipment, apparatus and appurtenances as may be required for the purposes of this section as if they had been mentioned in that section.

(3) Any illuminations and any brackets, lamps, fittings, equipment, apparatus or appurtenances provided, fitted up, maintained or operated under this section shall be so provided, fitted up, maintained and operated as to prevent interference with—

(a) any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line;

(b) electric lines and works (including works for the lodging therein of such lines and works) as respectively defined in the Electric Lighting Act, 1882, and belonging to or maintained by the Southern Electricity Board.

1882 c. 56.

(4) The Corporation shall not exercise the powers of this section in, on, over, above or across a trunk road without the consent of the Minister of Transport.

(5) The consent required by the foregoing subsection shall not unreasonably be withheld but may be given subject to a condition that the Corporation shall at their own expense remove anything placed in a trunk road under the powers conferred by this section if reasonably required by the Minister of Transport to do so.

78.—(1) At any time after the Corporation have provided any electronic or mechanical or reprographic equipment, or equipment for the printing of drawings, maps, plans, photographs and other documents, for the purposes of all or any of their work, they may, by agreement with any local authority, statutory or other body or person, use, or permit that local authority, statutory or other body or person to use, the said equipment for the purposes of that local authority, statutory or other body or person, and they may make such charges as may be agreed for the use of the said equipment.

PART X
—cont.

Electronic or
mechanical
equipment,
etc.

(2) The Corporation may provide data preparation and data processing services for any local authority, statutory or other body or person, and for these purposes the Corporation may perform all such other acts as may be necessary or convenient and may make such charges as may be agreed.

79. For the protection of the undertakers, the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers, apply and have effect:—

For protection
of certain
statutory
undertakers.

(1) In this section—

“operational land” has the same meaning as in section 221 of the Act of 1962;

“the undertakers” means the gas board, the electricity board and the generating board or any of them and in relation to any apparatus means the undertakers by whom the apparatus is maintained:

(2) Nothing in section 11 (Suspension of restrictive covenants) of this Act shall apply to any restriction for the protection or benefit of, or for securing access to, any operational land of the undertakers:

(3) Nothing in section 33 (Power to carry out environmental improvements) of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of that section and the said powers shall be so exercised as not to obstruct or render less convenient, so far as is reasonably practicable, the access to any apparatus:

(4) (a) Before the Corporation themselves do anything in relation to a house or building under subsection (1) of section 36 (Securing of unoccupied houses under Act of 1957) of this Act for the purpose of securing the premises against entry they shall give to the undertakers not less than seven days' notice of their intention to do so;

PART X
—cont.

- (b) Nothing in the said section 36 shall prejudice the right of the undertakers to enter upon any premises in exercise of their statutory powers in that behalf:

Provided that, without prejudice to any other obligation or liability arising in respect of any entry in exercise of statutory powers, any undertakers exercising such powers of entry in respect of any premises secured under the said section 36 shall ensure that the premises are not left less secure by reason of the entry:

- (5) Any difference which may arise between the Corporation and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration.

PART XI

GENERAL

Crown rights.

80. Nothing in this Act shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular and without prejudice to the generality of the foregoing, nothing herein contained shall authorise the Corporation to take, use or in any manner interfere with, any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

Local inquiries.

81.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946.

1946 c. 31.

As to powers of Board of Trade.

82. Anything required or authorised by or under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board or any person authorised in that behalf by the President.

83.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the city notice—

- (a) of the passing of any such resolution and of the date fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk of the city to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of premises used for any purpose, it shall be lawful for any person who—

- (a) immediately before that day was using any premises for that purpose; and
- (b) had before that day duly applied for the registration required by that provision;

to continue to use those premises for that purpose until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under subsection (2) of section 85 (Appeals) of this Act.

84. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation. Restriction on
right to
prosecute.

85.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly. Appeals.

PART XI
—cont.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired, or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceeding shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

Protection of members and officers of Corporation from personal liability.
1875 c. 55.

86. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

Application of general provisions of Act of 1936.

87.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 2 to this Act shall have effect as if references therein to that Act included references to this Act except Part III (Streets and highways).

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included references to the following Parts of this Act, that is to say:—

Part IV (Improvement and maintenance of dwellings and houses);

Part V (Environmental improvements);

Part VII (Public order and public safety).

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to the Parts of this Act mentioned in subsection (2) of this section and also to section 10 (Agreements with developers) of this Act.

(4) The section of the Act of 1936 mentioned in Part IV of the said schedule shall have effect as if references therein to that Act

included a reference to Part V (Environmental improvements), Part VI (Public health) and Part VII (Public order and public safety) of this Act.

88. Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration then, unless other provision is made, the reference shall be to a single arbitrator to be agreed upon between the parties, or failing agreement appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the others of them). Arbitration.

89. Nothing in section 64 (Power to provide facilities for hover vehicles, hydrofoil vessels, etc.) of this Act shall be taken as exempting the Corporation or any other person from the provisions of sections 9 and 10 of the Harbours Act, 1964, in relation to the works referred to in the said section 64. Saving for Harbours Act, 1964.
1964 c. 40.

90. All the costs, charges and expenses preliminary to and incidental to the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act for that purpose. Costs of Act.

SCHEDULES

Section 75.

SCHEDULE 1

ENACTMENTS MENTIONED IN SECTION 75 (1) (c) OF THIS ACT

1875 c. 55.	Public Health Act, 1875.
1890 c. 59.	Public Health Acts Amendment Act, 1890.
1907 c. 53.	Public Health Acts Amendment Act, 1907.
1925 c. 71.	Public Health Act, 1925.
1930 c. 44.	Land Drainage Act, 1930.
1936 c. 49.	Public Health Act, 1936.
1957 c. 56.	Housing Act, 1957.
1961 c. 48.	Land Drainage Act, 1961.
1961 c. 64.	Public Health Act, 1961.

Section 87.

SCHEDULE 2

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED TO THIS ACT OTHER THAN PART III

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, etc.
286	Proof of resolutions, etc.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
341	Power to apply provisions of Act to Crown property.

PART II

SCH. 2
—cont.

SECTIONS APPLIED TO PARTS IV, V AND VII OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
289	Power to require occupier to permit works to be executed by owner.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925. 1925 c. 22.

PART III

SECTION APPLIED TO PARTS IV, V AND VII AND SECTION 10 OF THIS ACT

Section	Marginal note
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.

PART IV

SECTION APPLIED TO PARTS V, VI AND VII OF THIS ACT

Section	Marginal note
287	Power to enter premises.

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CHAPTER xxxvi

ARRANGEMENT OF SECTIONS

PART I

Section

PRELIMINARY

1. Short title.
2. Division of Act into Parts.
3. Interpretation.

PART II

LANDS AND BUILDINGS

4. Provision of substituted sites.
5. Compulsory acquisition of easements.
6. Acquisition of land for development.
7. Amendment of section 34 of Public Health Act, 1961.
8. Amendment of section 16 of Act of 1959.
9. Power to Corporation to assist industry.
10. Agreements with developers.
11. Suspension of restrictive covenants.

Section

12. Recovery of deposits under Lands Clauses Acts or Compulsory Purchase Act 1965.
13. Destruction of documents connected with applications for permission for development.
14. Inspection of plans relating to applications for planning permission.

PART III

STREETS AND HIGHWAYS

15. Amendment of section 26 of Act of 1960.
16. Experimental traffic schemes.
17. Extension of power to make traffic regulation orders.

PART IV

IMPROVEMENT AND MAINTENANCE OF DWELLINGS AND HOUSES

18. Interpretation for this Part of Act.
19. Application of this Part of Act.
20. Local improvement grants.
21. Local maintenance grants.
22. Applications for and amounts of grants.
23. Conditions.
24. Agreements with owners.
25. Notice of intention to execute works.
26. Appeal to county court.
27. Execution of works by Corporation.
28. Purchase notice.
29. Compensation on compulsory acquisition.
30. Power of Minister to vary certain sums.
31. Suspended improvement notices.

PART V

ENVIRONMENTAL IMPROVEMENTS

32. Declaration of environmental improvement area.
33. Power to carry out environmental improvements.
34. Acquisition of land for environmental improvements.
35. Extinguishment of rights over land compulsorily acquired.

PART VI

PUBLIC HEALTH

36. Securing of unoccupied houses under Act of 1957.
37. Tattooists.

PART VII

PUBLIC ORDER AND PUBLIC SAFETY

Section

- 38. Entertainment clubs.
- 39. Mobile coffee stalls, etc.
- 40. Misleading signs on motor vehicles.
- 41. Amendment of section 67 of Act of 1959.
- 42. Fire precautions in registered clubs.
- 43. Underground car parks.
- 44. Further provision as to underground car parks.
- 45. Interpretation and powers of entry for purposes of last two foregoing sections.
- 46. Prescription of signs, etc. to be used on certain buildings.
- 47. Preventing fire in public or other buildings.
- 48. Parts of buildings used for storage of flammable substances.

PART VIII

FINANCE AND SUPERANNUATION

- 49. Power to borrow.
- 50. Establishment expenses.
- 51. Recovery of sums paid to officers, etc.
- 52. False statements to obtain rent rebates, etc.
- 53. Insurance fund.
- 54. Amendment of section 72 of Act of 1959.
- 55. Certain remuneration and service excluded for superannuation purposes.

PART IX

RESTRICTION OR DISCONTINUANCE OF FERRY

- 56. Interpretation of this Part of Act.
- 57. Restriction or discontinuance of ferry.
- 58. Retention and disposal of ferry works and lands.
- 59. Provision against danger to navigation.
- 60. Abatement of works abandoned or decayed.

PART X

MISCELLANEOUS

- 61. Golf courses.
- 62. Unification of law affecting Corporation's cemeteries.
- 63. Grant of exclusive rights of burial under hand.
- 64. Power to provide facilities for hover vehicles, hydrofoil vessels, etc.
- 65. Boundary walls.
- 66. Protection of seashore and adjoining land from pollution.
- 67. Removal of life-saving equipment of Corporation.

Section

- 68. Provision of boating facilities.
- 69. Saving for provisions of Coast Protection Act, 1949.
- 70. Research into matters concerning social conditions, etc.
- 71. Boarding out of aged and handicapped persons.
- 72. Insurance of certain voluntary workers.
- 73. Power to provide dustbins for trade refuse.
- 74. Notice of variation of rent, etc.
- 75. Power to require information as to ownership of premises.
- 76. Lien over aircraft.
- 77. Illuminations.
- 78. Electronic or mechanical equipment, etc.
- 79. For protection of certain statutory undertakers.

PART XI

GENERAL

- 80. Crown rights.
- 81. Local inquiries.
- 82. As to powers of Board of Trade.
- 83. The appointed day.
- 84. Restriction on right to prosecute.
- 85. Appeals.
- 86. Protection of members and officers of Corporation from personal liability.
- 87. Application of general provisions of Act of 1936.
- 88. Arbitration.
- 89. Saving for Harbours Act, 1964.
- 90. Costs of Act.

SCHEDULES:

Schedule 1—Enactments mentioned in section 75 (1) (c) of this Act.

Schedule 2—Sections of Act of 1936 applied—

Part I—Sections applied to this Act other than Part III.

Part II—Sections applied to Parts IV, V and VII of this Act.

Part III—Section applied to Parts IV, V and VII and section 10 of this Act.

Part IV—Section applied to Parts V, VI and VII of this Act.